

THE LIGHT THAT LIES

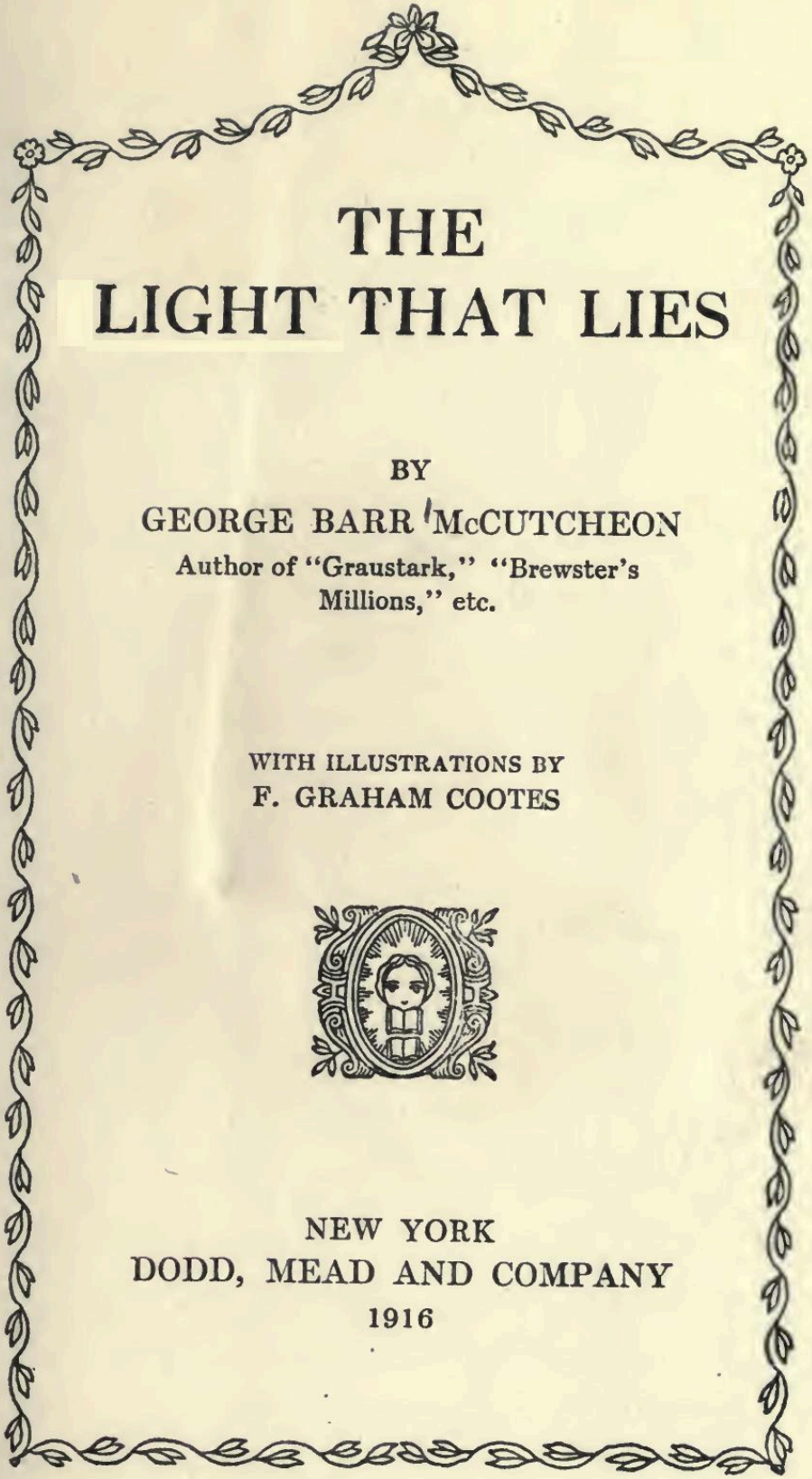
BY
GEORGE BARR McCUTCHEON

Author of "Graustark," "Brewster's
Millions," etc.

WITH ILLUSTRATIONS BY
F. GRAHAM COOTES



NEW YORK
DODD, MEAD AND COMPANY
1916

A decorative border of leaves and flowers surrounds the text.

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Title: The Light that Lies

Author: George Barr McCutcheon

Illustrator: F. Graham Cootes

Release date: February 3, 2017 [eBook #54098]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/54098

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THAT LIES ***

THE LIGHT THAT LIES

By George Barr McCutcheon

The McClure Publications. Inc.

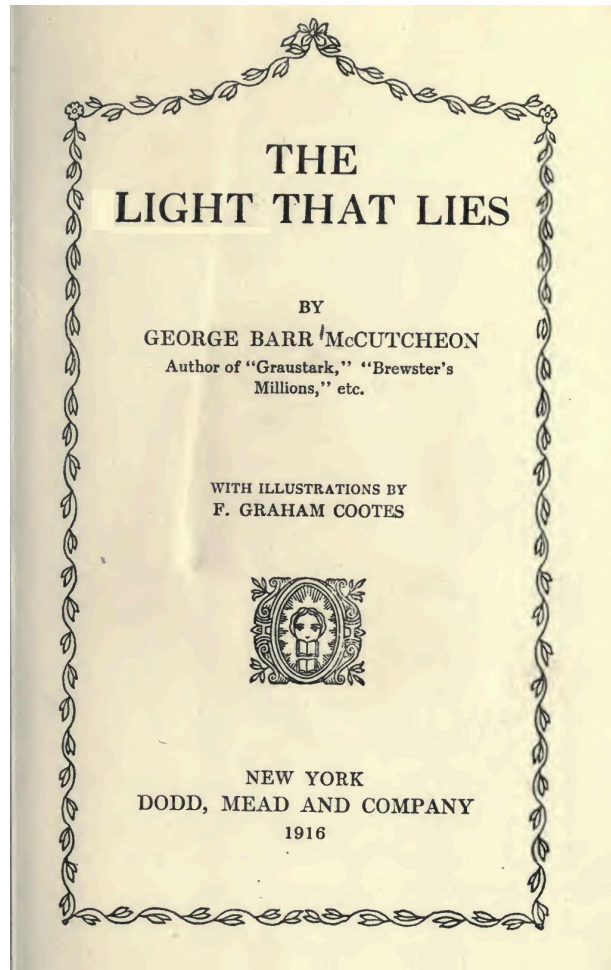
1916

The Dodd Mead And Company, Inc.



She was looking into his eyes, calmly, seriously, and,
he thought, a bit speculatively (*Page 13*)





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CHAPTER I

Sampson had been uncommonly successful in evading jury service. By some hook or crook he always had managed to “get off,” and he had begun to regard his trips down to General or Special Sessions—coming with monotonous regularity about three times a year—as interruptions instead of annoyances. Wise men advised him to serve and get it over with for the time being, but he had been so steadfastly resourceful in confining his jury service to brief and uneventful “appearances,” and to occasional examinations as to his fitness to serve as a juror, that he preferred to trust to his smartness rather than to their wisdom. Others suggested that he get on the “sheriff’s jury,” a quaintly distinguished method of serving the commonwealth in that the members perform their duty as citizens in such a luxurious and expensive way that they never appear in the newspapers as “twelve good men and true” but as contributors to somewhat compulsory festivities in which justice is done to the inner man alone. But Sampson, though rich, abhorred the sheriff’s jury. He preferred to invent excuses rather than to have them thrust upon him.

Having escaped service on half-a-dozen murder trials by shrewd and original responses to important questions by counsel for one side or the other—it really didn’t matter to Sampson which side it was so long as he saw the loophole—he found himself at last in the awkward position of having exhausted all reasonable excuses, and was obliged to confess one day in court that he had reconsidered his views in regard to capital punishment. This confession resulted, of course, in his name being dropped from the “special panel,” for the jury commissioner did not want any man in that august body who couldn’t see his way clear to taking the life of another. He “got off” once on the ground that he was quite certain he could not convict on circumstantial evidence, despite the assurance of learned experts that it is the *best* evidence of all, and he escaped another time because he did not consider insanity a defence in homicidal cases.

Then they drew him for Special Sessions and eventually for the humiliating lower courts, the result being that his resourcefulness was under

a constant and ever increasing strain. Where once he had experienced a rather pleasing interest in “getting off” in important cases, he now found himself very hard put to escape service in the most trifling of criminal trials.

He began to complain bitterly of the injustice to himself, an honest, upright citizen who was obliged to live in a constant state of apprehension. He felt like a hunted animal. He was no sooner safely out of one case when he was called for another.

It was all wrong. Why should he be hounded like this when the city was full of men eager to earn two dollars a day and who would not in the least mind sitting cross-legged and idle all day long in a jury box—snoozing perhaps—in order to do their duty as citizens? Moreover, there were men who actually *needed* the money, and there were lots of them who were quite as honest as the prisoners on trial or even the witnesses who testified.

He was quite sure that if he ever was sworn in as a juror, his entire sympathy would be with the prisoner at the bar, for he would have a fellow feeling for the unhappy wretch who also was there because he couldn't help it. The jury system was all wrong, claimed Sampson. For example, said he, a man is supposed to be tried by twelve of his peers. That being the case, a ruffian from the lower East Side should be tried by his moral and mental equals and not by his superiors. By the same argument, a brainy, intelligent bank or railway president, an editor, or a college professor, should not be tried by twelve incompetent though perfectly honest window-washers. Any way you looked at it, the jury system was all wrong. The more Sampson thought about it the more fully convinced was he that something ought to be done about it.

He had been obliged to miss two weddings, a private-car jaunt to Aiken, one of the Harvard-Yale football matches, the docking of the *Olympic* when she carried at least one precious passenger, the sailing of the *Cedric* when she carried an equally precious but more exacting object of interest, a chance to meet the Princess Pat, and a lot of other things that he wouldn't have missed for anything in the world notwithstanding the fact that he couldn't remember, off hand, just what they were. Suffice it to say, this miserable business of “getting off” juries kept Sampson so occupied that he found it extremely difficult to get on with anything else.

He was above trying to “fix” any one. Other men, he knew, had some one downtown who could get them off with a word to the proper person, and others were of sufficient importance politically to make it impossible for them to be in contempt of court. That's what he called “fixing things.”

Shortly after the holidays he was served with a notice to appear and be examined as to his fitness to serve as juror in the case of the State vs. James W. Hildebrand. Now, he had made all his arrangements for a trip to California. In fact, he planned to leave New York on the twenty-first of January, and here he was being called into court on the twentieth. Something told him that the presiding justice was sure to be one of those who had witnessed one or more of his escapes from service on previous occasions, and that the honourable gentleman in the long black gown would smile sadly and shake his head if he protested that he was obliged to get off because he had to go to California for his health. The stupidest judge on earth would know at a glance that Sampson didn't have to go anywhere for his health. He really had more of it than was good for him.

If he hadn't been so healthy he might have relished an occasional fortnight of indolence in a drowsy, stuffy, little court-room with absolutely nothing to do but to look at the clock and wonder, with the rest of the jurors, how on earth the judge contrived to wake up from a sound sleep whenever a point came up for decision and always to settle it so firmly, so confidently, so promptly that even the lawyers were fooled into believing that he had been awake all the time.

Sampson entered the little court-room at 9:50 o'clock on the morning of the twentieth.

He was never to forget the morning of the twentieth.

Fifteen or twenty uneasy, sour-faced men, of all ages, sizes and condition sat outside the railing, trying to look unconcerned. They couldn't fool him. He knew what they were and he knew that in the soul of each lurked the selfish, cruel prayer that twelve men would be snatched from among them and stuffed into the jury box to stay before the clerk could draw his own dreaded name from the little box at his elbow.

Other men came in and shuffled into chairs. The deputy clerk of the court emerged from somewhere and began fussing with the papers on his desk.

Every man there envied him. He had a nice job, and he looked as though he rather liked being connected with an inhuman enterprise. He was immune. He was like the man who already has had smallpox. Lazy court attendants in well-worn uniforms ambled about freely. They too were envied. They were thoroughly court-broken. A couple of blithe, alert looking young men from the district attorney's office came and, with their hands in their pockets, stared blandly at the waiting group, very much as the judges at a live-stock show stare at the prize pigs, sheep and cattle. They seemed to be appraising the supply on hand and, to judge by their manner, they were not at all favourably impressed with the material. Indeed, they looked unmistakably annoyed. It was bad enough to have to select a jury in any event, but to have to select one from *this* collection of ignoramuses was—well, it was *too* much!

The hour hand on the clock said ten o'clock, but everybody was watching the minute hand. It had to touch twelve before anything, could happen. Then the judge would steal out of his lair and mount the bench, while every one stood and listened to the unintelligible barking of the attendant who began with something that sounded suspiciously like “Oy-yoy!” notwithstanding the fact that he was an Irish and not a Jewish comedian.

Two uninteresting, anxious-eyed, middle-aged men, who looked a trifle scared and uncertain as to their right to be there, appeared suddenly inside the railing, and no one doubted for an instant that they were the defendant's lawyers. Sampson always had wondered why the men from the district attorney's office were so confident, so cocky, and so spruce looking while their opponents invariably appeared to be a seedy, harassed lot, somewhat furtive in their movements and usually labouring under the strain of an inward shyness that caused a greasy polish of perspiration to spread over their countenances.

Sampson was to find that these timid, incompetent looking individuals had every reason in the world to be perspiring even so early in the proceedings. They turned out to be what is known in rhetorical circles as “fire-eaters” The judge took his seat and the clerk at once called the case of the State vs. James W. Hildebrand. Sampson speculated. What had Hildebrand done to get himself into a mess of this sort? Was it grand or petit larceny, or was it house-breaking, entering, safe-cracking, or—Two burly attendants came up the side aisle and between them walked a gaunt, grey,

stooped old man, his smooth shaven face blanched by weeks of sunless existence.

Sampson had expected to see a sullen-faced, slouching young fellow, shaved and brushed and combed into an unnatural state of comeliness for the purpose of hoodwinking the jury into the belief that his life was as clean as his cheek. He could not deny himself a stare of incredulity on beholding this well-dressed, even ascetic looking man who strode haltingly, almost timidly through the little gate and sank into the chair designated by his counsel. Once seated, he barely glanced at his lawyers, and then allowed his eyes to fall as if shame was the drawing power. Somehow, in that instant, Sampson experienced the sudden conviction that this man James W. Hildebrand was no ordinary person, for it was borne in upon him that he despised the men who were employed to defend him. It was as if he were more ashamed of being seen with them than he was of being haled into a court of justice charged with crime.

The assistant district attorney in charge of the case addressed the waiting talesmen, briefly outlining the case against the defendant, and for the first time in his experience Sampson listened with a show of interest.

James W. Hildebrand was charged with embezzlement. Judging by the efforts of his counsel to have the case set over for at least ten days and the Court's refusal to grant a delay, together with certain significant observations as to the time that would probably be required to produce and present the evidence—a week or more—Sampson realised that this was a case of considerable magnitude. He racked his brain in the futile effort to recall any mention of it in the newspapers. It was his practice to read every line of the criminal news printed, for this was the only means he had of justifying the declaration that he had formed an opinion. Nothing escaped him—or at least he thought so—and yet here was a case, evidently important, that had slipped through without having made the slightest impression on him. It was most disturbing. This should not have happened.

His heart sank as he thought of the California reservations uptown. He was expected to take up the transportation and Pullman that very afternoon.

The old man—he was seventy—was accused of having misappropriated something like fifty thousand dollars of the funds belonging to a real-estate and investment concern in which he was not only a partner but also its

secretary and treasurer. The alleged crime had been committed some five years prior to the day on which he was brought to trial.

After having evaded capture for four years and a half by secluding himself in Europe, he voluntarily had returned to the States, giving himself up to the authorities. Sampson abused himself secretly for having allowed such a theatric incident as this to get by without notice on his part. Other prospective jurors sitting nearby appeared to know all about the case, for he caught sundry whispered comments that enlightened him considerably. He realised that he had been singularly and criminally negligent.

A protracted and confidential confab took place between the Court and the counsel for both sides. Every juror there hoped that they were discussing some secret and imperative reason for indefinitely postponing the case after all—or, perhaps, better than that, the prisoner was going to plead guilty and save all of them!

Finally the little group before the bench broke up and one of the attorneys for Hildebrand approached the rail and held open the gate. A woman entered and took a seat beside the prisoner. Sampson, with scant interest in the woman herself—except to note that she was slender and quite smartly attired—was at once aware of a surprising politeness and deference on the part of the transmogrified lawyers, both of whom smirked and scraped and beamed with what they evidently intended to be gallantry.

The attorneys for the state regarded the lady with a very direct interest, and smiled upon her, not condescendingly or derisively as is their wont, but with unmistakable pleasure. A close observer would have detected a somewhat significant attentiveness on the part of the justice, a middle-aged gentleman whose business it was to look severe and ungenial. He gave his iron-grey moustache a tender twist at each end and placed an elbow on the desk in front of him, revealing by that act that he was as human as any one else.

I have neglected to state that Sampson was thirty, smooth-faced, good-looking, a consistent member of an athletic club and a Harvard man who had won two H's and a *cum laude* with equal ease. You will discover later on that he was unmarried.

He was the seventeenth talesman called. Two jurors had been secured. The other fourteen had been challenged for cause and, for the life of him, he couldn't see why. They all looked pretty satisfactory to him. He garnered a little hope for himself in the profligate waste of good material. If he could sustain his customary look of intelligence there was a splendid chance that he too would be rejected.

It seemed to him that the attendant in announcing his name and place “of residence after the oath vociferated with unusual vehemence. Never before had he heard his name uttered with such amazing gusto.

“You have heard the statement concerning the charge against the defendant, Mr. Sampson,” said the assistant district attorney, taking his stand directly in front of him. “Before going any farther, I will ask if you know of any reason why you cannot act as a juror in this case?”

Sampson had always been honest in his responses. He never had lied in order to “get off.” Subterfuges and tricks, yes—but never deliberate falsehood.

“No,” he answered.

“Have you heard of this case before?”

“No,” admitted Sampson, distinctly mortified.

“Then you have formed no opinion as to the guilt or innocence of the defendant?”

“No.”

“Are you acquainted with the defendant, James W. Hildebrand?”

“No.”

“Have you had any business dealings with either of his counsel, Mr. Abrams or Mr. O'Brien?”

“No.”

“Are you acquainted with either of his former partners, the gentlemen who are to appear as witnesses against him, Thomas Stevens and John L. Drew?”

Sampson's face brightened. "I know a John Drew," he said. The lawyer shook his head and smiled. "But he's not in the loan business," he added.

"Do you know Miss Alexandra Hildebrand, the granddaughter of this defendant? The lady sitting beside him?"



For the first time, Sampson directed his attention to the woman



For the first time, Sampson directed his attention to the woman. His glance, instead of being casual and perfunctory, as he had expected it would be, developed into a prolonged stare that left him shy and confused. She was looking into his eyes, calmly, seriously, and, he thought, a bit speculatively, as if she were estimating his mental displacement. As a matter of fact, she was merely detaching him from the others who had gone

before. He had the strange, uncomfortable feeling that he was being appraised by a most uncompromising judge. His stare was not due to resentment on his part because of her cool inspection. It was the result of suddenly being confronted by the loveliest girl he had ever seen—unquestionably the loveliest.

It seemed an affront to this beautiful, clear-eyed creature to say that he did not know her. To say it to her face, too—with her eyes upon him—why, it was incomprehensibly rude and ungallant. He ought to have been spared this unnecessary humiliation, he thought. How would she feel when he deliberately, coldly insulted her by uttering a bald, harsh negative to the question that had been asked?

“I—I am afraid not,” he managed to qualify, hoping for a slight smile of acknowledgement.

“Would you be inclined to favour the defendant because of his age, Mr. Sampson?”

Sampson hesitated. Here was his chance. He looked again at Miss Alexandra Hildebrand. She was still regarding him coolly, impersonally. After all, he was nothing to her but a juror—just an ordinary, unwholesome specimen undergoing examination. If he was rejected, he would pass out of her mind on the instant and never again would he be permitted to enter. He felt very small and inconsequential.

“Well, naturally, I suppose, I should be influenced to some extent by his age,” he replied.

“You would, however, keep your mind open to the evidence in the case and render a verdict according to that evidence? You would not discharge him solely because he is an old man?”

“I don't know where my sympathy would carry me,” said Sampson evasively.

“I see. Well, if you should be accepted by both sides as a juror to sit in this case you would at least try to divide your sympathy as fairly as possible between us, wouldn't you? You would not deny the long-suffering State of New York a share of your sympathy, would you?”

Miss Hildebrand, at that juncture, touched her grandfather on the arm and whispered something in his ear. For the first time the old man looked at the talesman in the chair. Sampson was acutely aware of a sudden flash of interest in the prisoner's eyes. Moreover, the young woman was regarding him rather less impersonally.

Sampson assumed an air of extreme hauteur "If I am accepted by both sides in this case, my sympathy will be, first of all, with myself, I am not eager to serve. I shall, however, do my best to render an intelligent, just verdict."

"According to the evidence and the law as laid down by the honourable Court?"

"According to the circumstances as I see them."

"That is not a direct answer to my question, Mr. Sampson."

"I am not willing to say that I will be governed entirely by the evidence. I can only say, that I should render what I consider to be a just and reasonable verdict, depending on circumstances."

"Ahem! You are quite sure that you could render a just and reasonable verdict?"

"Yes."

"And yet you admit that you cannot answer for your sympathies?"

"Are you cross-examining me?"

"Not at all, Mr. Sampson," responded the other smoothly. "I am merely trying to ascertain whether you are competent to serve as a juror in this case."

Sampson was saying to himself: "Thank the Lord, he will never accept me." Aloud he said: "Pray, overlook my stupidity and proceed—"

The Court leaned forward and tapped smartly on the desk with a lead pencil. "We are wasting time, gentlemen. Please omit the persiflage."

"Have you ever served as a juror in a criminal case, Mr. Sampson?" inquired the lawyer. Sampson had turned pink under the Court's mild irony.

“No,” he answered, and glanced at Miss Hildebrand, expecting to see a gleam of amusement in her eyes. She was regarding him quite solemnly, however.

“You are a Harvard man, I believe, Mr. Sampson?”

“Yes.”

“If it should be shown that this defendant is also a Harvard graduate, would that fact serve to prejudice you in his favour?”

“Certainly not,” said Sampson, warmly. This was *too much*!

“What is your business, Mr. Sampson?”

“I am connected with the Sampson Steamship and Navigation Company.”

“In what capacity?”

“I am its president.”

“You are, I believe, the son of the late Peter Stuyvesant Sampson, founder of the company?”

“I am.”

“The only son?”

“And heir,” said Sampson curtly. “I inherited my job, if that's what you are trying to get at. And it is more or less of an honorary position, if that will help you any. I am president of the company because I happen to own all but five shares of the capital stock, and not because I really want to hold, or because I am in any sense competent to fill the office. Now you know all that there is to know about my connection with the company.”

“Thanks,” said the assistant district attorney, drily. “And now, Mr. Sampson, could you sit as a juror in this case and give, on your honour as a man, despite a very natural sympathy that may be aroused for this aged defendant, a verdict in favour of the State if it is proved to you beyond all doubt that he is guilty as charged?”

There was but one answer that Sampson could give. He felt exceedingly sorry for himself. “Yes.” Then he made haste to qualify: “Provided, as I said before, that there are no extenuating circumstances.”

“But you would not deliberately discharge a guilty man just because you happened to feel sorry for him, would you? We, as individuals, are all sorry for the person we are obliged to punish, Mr. Sampson. But the law is never sorry. The mere fact that one man disregards the law is no reason why the rest of us should do the same, is it?”

“Of course not,” said Sampson, feeling himself in a trap.

“The State asks no more of you than you would, as a citizen, ask of the State, Mr. Sampson. The fact that this defendant, after five years, voluntarily surrendered himself to the authorities—would that have any effect on your feelings?”

“Yes, it would. I should certainly take that into consideration. As a citizen, I could not ask more of any man than that he surrender himself to my State if it couldn't catch him.”

The Court tapped with his pencil, and a raucous voice from somewhere called for order.

“Are you a married man, Mr. Sampson?”

“I am not.”

“The State is satisfied,” said the assistant district attorney, and sat down.

Sampson caught his breath. Satisfied? It meant that he was acceptable to the State! After all he had said, he was acceptable to the State. He could hardly believe his ears. Landed! Landed, that's what it meant. The defence would take him like a shot. A cold perspiration burst out all over him. And while he was still wondering how the district attorney could have entrusted the case to such an incompetent subordinate, counsel for the defence began to ply him with questions—perfunctory, ponderous questions that might have been omitted, for any one with half an eye could see that Sampson was doomed the instant the State said it was satisfied.

His spirit was gone. He recognised the inevitable; in a dazed sort of way he answered the questions, usually in monosyllables and utterly without spunk. Miss Hildebrand was no longer resting her elbows on the table in front of her in an attitude of suspense. She was leaning comfortably back in her chair, her head cocked a little to one side, and she gazed serenely at the

topmost pane of glass in the tall window behind the jury box. She appeared to be completely satisfied.

He saw the two lawyers lean across the table in consultation with the prisoner and his granddaughter, their heads close together. They were discussing him as if he were the criminal in the case. Miss Hildebrand peered at him as she whispered something in her grandfather's ear, and then he caught a fleeting, though friendly smile in her eyes. He was reminded, in spite of his extreme discomfiture, that she was an amazingly pretty girl.

“No challenge,” said the defendant's attorney, and Sampson was told to take seat No. 3 in the jury box.

“Defendant, look upon the juror. Juror, look upon the defendant,” said the clerk, and with his hand on the Bible Sampson took the oath to render a true verdict according to the law and the evidence, all the while looking straight into the eyes of the gaunt old man who stood and looked at him wearily, drearily, as if from a distance that rendered his vision useless.

Then Sampson sank awkwardly into the third seat, and sighed so profoundly that juror No. 2 chuckled.

He certainly was in for it now.

CHAPTER II

You needn't pack," said Sampson to his valet that evening. "I'm stuck."

"Stuck, sir?"

"Caught on the jury, Turple. Landed at last. But," he sighed, "I've given 'em a good run though, haven't I?"

"You 'ave, sir. I dare say you will like it 'owever, now that you've been stuck, as you say. My father, when he was alive, was very fond of serving on the juries, sir. He was constantly being 'ad up in small cases, and it was 'is greatest ham—ambition to get a whack at a good 'orrifying murder trial. I 'ope as 'ow you 'ave been stuck on a murder case, sir. In England we—"

"It isn't a murder case. Merely embezzlement. But I must not discuss the case, Turple, not even with you."

"What a pity, sir. You usually consult me about any think that—"

"Call up the New York Central office at Thirtieth Street and cancel my reservations, and lay out a blue serge suit for to-morrow."

"Isn't it a bit coolish to be wearing a serge—"

"Those court-rooms are frightfully close, Turple. A blue serge."

"You look better in a blue serge than anythink you—"

"It is comfort, not looks, that I'm after, Turple," explained Sampson, who perhaps lied.

"Sets a man off as no other goods—I beg pardon, sir. I will call up the booking office at once, sir. The blue serge, sir?"

"The blue serge," said Sampson, brightly. "Anythink else, sir?"

Sampson grew facetious. "You might give me a shirt and a collar and a necktie, Turple." The man bowed gravely and retreated. His master, moved by an increasing exhilaration, called after him: "I might also suggest a pair

of shoes and—well, you know what else I'm in the habit of wearing in the daytime.”

Turple, knowing his master's feelings about jury service, was very much amazed later on to hear him whistling cheerily as he made preparations for a dinner engagement. The mere thought of a jury, heretofore, had created in his master a mood provocative of blasphemy, and here he was—actually “landed,” as he had put it himself—whistling as gaily as a meadow lark. Turple shook his head, completely puzzled, for he also knew his master to be a most abstemious man. In all his three years of association with his employer he had never known him to take a nip during the daytime, and that is what Turple called being most abstemious.

The next morning Sampson, instead of hanging back aggrievedly as was his wont, was in the court-room bright and early—(half an hour ahead of time, in fact)—and he never looked fresher, handsomer or more full of the joy of living. He passed the time of day with the attendants, chatted agreeably with No. 2, who also came in early, and subsequently listened politely to the worries of No. 5, a chubby-faced bachelor who couldn't for the life of him understand why the deuce manicurers persisted in cutting the cuticle after having been warned not to do so.

He rather pitied No. 7, who appeared in a cutaway coat a trifle too small for his person and a very high collar that attracted a great deal of attention from its wearer if from no one else. No. 7, he recalled, had been quite indifferently garbed the day before: a shiny, well-worn sack coat, trousers that had not been pressed since the day they left the department store, and a “turndown” collar that had been through the “mangle” no less than a hundred times—and should have been in one at that instant instead of around his neck. No. 7 was also minus a three days' growth of beard.

Everybody seemed bright and cheerful. There were still two more jurors to be secured when court convened. Never in all his experience had Sampson seen a judge on the bench who behaved so beautifully as this one. He looked as though he never had had a grouch in his life, and as if he really enjoyed listening to the same old questions over and over again. Occasionally he interjected a question or an interpolation that must have been witty, for he graciously permitted his hearers to laugh with him; and at no time was he cross or domineering. His hair, carefully brushed, was

sleekly plastered into an enduring neatness, and his moustache was never so smartly trimmed and twisted as it was on this sprightly morning. One might have been led into believing that it was not winter but early spring.

The deputy clerk had taken too much pains in shaving himself that morning, for in his desire to scrape closely in the laudable effort to curb the sandy growth on his cheek and chin, he had managed to do something that called for the application of a long strip of pale pink court-plaster immediately in front of his left ear. He was particular about turning the other cheek, however, so that unless you walked completely around him you wouldn't have noticed the court-plaster. The attendants, noted for their untidiness, were perceptibly spruced up. If any one of them was chewing tobacco, he managed to disguise the fact.

The only person in the court-room, aside from the prisoner himself, who had not changed for the better over night, was Miss Alexandra Hildebrand. She could not have changed for the better if she had tried. When she took her seat beside her grandfather, she was attired as on the day before. Her cool, appraising eyes swept the jury box. More than one occupant of that despised pen felt conscious of his sartorial rehabilitation. A faint smile appeared at the corners of her adorable mouth. Even Sampson, the proud and elegant Sampson, wondered what there was for her to smile at.

Being utterly disinterested in the composition of the jury of which he was an integral part, Sampson paid not the slightest attention to the process of rounding out the even dozen. While counsel struggled over the selection of talesmen to fill the two vacant places, he devoted himself to the study of Miss Hildebrand. This study was necessarily of a surreptitious character, and was interrupted from time to time by the divergence of the young lady's attention from the men who were being examined to those already accepted. At such times, Sampson shifted his gaze quickly. In two instances he was not quite swift enough, and she caught him at it. He was very much annoyed with himself. Of course, she would put him in a class with the other members of the jury, and that was a distinction not to be coveted. They were very honest, reliable fellows, no doubt, but Heaven knows they were not well-bred. No well-bred man would stare at Miss Hildebrand as No. 4 was staring, and certainly No. 7 was the most unmannerly person he had ever seen. The fellow sat with his mouth open half the time, his lips hanging limp in a fixed fatuous smile, his gaze never wavering. Sampson

took the trouble to dissect No. 7's visage—in some exasperation, it may be said. He found that he had a receding chin and prominent upper teeth. Just the sort of a fellow, thought Sampson, who was sure to consider himself attractive to women.

Miss Hildebrand was twenty-four or -five, he concluded. She was neither tall nor short, nor was she what one would describe as fashionably emaciated. Indeed, she was singularly without angles of any description. Her hair was brown and naturally wavy—at least, so said Sampson, poor simpleton—and it grew about her neck and temples in a most alluring manner. Her eyes were clear and dark and amazingly intelligent. Sampson repented at once of the word intelligent, but he couldn't think of a satisfactory synonym. Intelligent, he reflected, is a word applied only to the optics of dumb brutes—such as dogs, foxes, raccoons and the like—and to homely young women with brains. Understanding—that was the word he meant to use—she had understanding eyes, and they were shaded by very long and beautiful lashes.

Her chin was firm and delicate, her mouth—well, it was a mouth that would bear watching, it had so many imperilling charms.

Her nose? Sampson hadn't the faintest idea how to describe a nose. Noses, he maintained, are industrial or economic devices provided by nature for the sole purpose of harbouring colds, and are either lovely or horrid. There is no intermediate class in noses. You either have a nose that is fearfully noticeable or you have one that isn't. A noticeable nose is one that completely and adequately describes itself, sparing you the effort, while the other kind of a nose—such as Miss Hildebrand's—is one that you wouldn't see at all unless you made an especial business of it. That sort of a nose is simply a part of one's face. There are faces, on the other hand, as you know, that are merely a part of one's nose.

His rather hasty analysis of yesterday was supported by the more deliberate observations of to-day. She was a cool-headed, discerning young woman, and not offensively clever as so many of her sex prove to be when it is revealed to them that they possess the power to concentrate the attention of men. Her interest in the proceedings was keen and extremely one-sided. She was not at all interested in the men who failed to come up to her notion of what a juror ought to be. It was always she who put the final

stamp of approval on the jurors selected. Two or three times she unmistakably overcame the contentions of her grandfather's counsel, and men got into the box who, without her support, would have been challenged—and rightly, too, thought Sampson. No. 7 for instance. He certainly was not an ideal juror for the defendant, thought Sampson. And the fat little bachelor—why, he actually had admitted under oath that he knew the district attorney and a number of his assistants, and was a graduate of Yale. But Miss Hildebrand picked him as a satisfactory juror.

Sampson's reflections—or perhaps his ruminations—were brought to an end by the completion of the jury. The last man accepted was a callow young chap with eye-glasses, who confessed to being an automobile salesman.

They were sworn immediately and then the senior counsel for the State arose and announced that he had no desire to keep the jury confined during the course of the trial; the State was satisfied to allow the members to go to their own homes over night if the defence had no objections. Promptly the attorneys for the defendant, evidently scenting something unusual, put their heads together and whispered. A moment later one of them got up and said that the defence would take the unusual course of asking that the jury be put in charge of bailiffs. He did not get very far in his remarks, however. Miss Hildebrand's eyes had swept the jury box from end to end. She observed the look of dismay that leaped into the faces of the entire dozen. Sampson had a queer notion that she looked at him longer than at the others, and that her gaze was rather penetrating. An instant later she was whispering in the ear of the second lawyer, and—well, they were all in conference again. After a period of uncertainty for the victims, the first lawyer, smiling benignly now, withdrew his motion to confine the jury, and graciously signified that the defence was ready to proceed.

The first witness for the State was a Mr. Stevens. Sampson was sure from the beginning that he wasn't going to like Mr. Stevens. He was a prim, rather precious gentleman of forty-five, with a fond look in his eye and a way of putting the tips of his four fingers and two thumbs together that greatly enhanced the value of the aforesaid look. In addition to these mild charms of person, he had what Sampson always described as a “prissy” manner of speaking. No. 4 made a friend of Sampson by whispering—against the rules, and behind his hand, of course—that he'd like to “slap the

witness on the wrist.” Sampson whispered back that he'd probably break his watch if he did.

Anyhow, Mr. Stevens was recognised at once as the principal witness for the State. He was the head of the company that had suffered by the alleged peculations of Mr. Hildebrand. Ably assisted by the district attorney, the witness revealed the whole history of the Cornwallis Realty and Investment Company.

James Hildebrand was its founder, some thirty years prior to his surreptitious retirement, and for the first twenty years of its existence he was its president. At the end of that period in the history of the thriving and honourable business, Mr. Stevens became an active and important member of the firm through the death of his father, who had long been associated with Mr. Hildebrand as a partner. The other partners were John L. Drew, Joseph Schoolcraft, Henry R. Kauffman and James Hildebrand, Jr., the son of the president. The business, according to Mr. Stevens, was then being conducted along “back number” lines. It became necessary and expedient to introduce fresh, vigorous, up-to-date methods in order to compete successfully with younger and more enterprising concerns. (On cross-examination, Mr. Stevens admitted that the company was not making money fast enough.) The defendant, it appears, was a conservative. He held out stubbornly for the old, obsolete methods, and, the concern being incorporated, it was the wisdom of the other members (Hildebrand, Jr., dissenting) that a complete reorganisation be perfected. The witness was made president, Mr. Drew vice-president, and Mr. Hildebrand secretary and treasurer, without bond. His son withdrew from the company altogether, repairing to Colorado for residence, dying there three years later.

The defendant, individually and apart from his holdings in the company, owned considerable real-estate on Manhattan Island. His income, aside from his salary and his share of profits in the business, was derived from rentals and leaseholds on these several pieces of property. Values in certain districts of New York fell off materially when business shifted from old established centres and wended its fickle way northward. Mr. Hildebrand was hard hit by the exodus. His investments became a burden instead of a help and ultimately he was obliged to make serious sacrifices. He sold his downtown property. The depreciation was deplorable, Mr. Stevens admitted.

The former president of the company soon found himself in straitened circumstances. He was no longer well-to-do and prosperous; instead, he was confronted by conditions which made it extremely difficult for him to retain his considerable interest in the business. The company at this stage in the affairs of their secretary and treasurer, proffered help to him in what Mr. Stevens considered an extremely liberal way. It was proposed that Mr. Hildebrand sell out his interest in the company to the witness and his brother-in-law, Mr. Drew, they agreeing to take all of his stock at a figure little short of par, notwithstanding it was a very bad year—1907, to be precise.

The defendant refused to sell. Subsequently he reconsidered, and they took over his stock, excepting five shares which he retained for obvious reasons, and he was paid in cash forty-four thousand dollars for the remaining forty shares. Mr. Stevens already had purchased, at a much higher price, the fifteen shares belonging to James Hildebrand, Jr. The defendant was to retain the position of secretary and treasurer at a fixed salary of six thousand dollars a year.

In brief—although the district attorney was a long time in getting it all out of Mr. Stevens—it was not until 1908 that the bomb burst and the company awoke to the fact that its treasury was being, or to put it exactly, had been systematically robbed of a great many thousands of dollars. Experts were secretly put to work on the books and after several weeks they reported that at one time the total shortage had reached a figure in excess of ninety-five thousand dollars, but that this amount had been reduced by the restoration of approximately fifty thousand dollars during a period covering the eleven months immediately preceding the investigation. It was established beyond all question that the clerks and bookkeepers in the office were absolutely guiltless, and, to the profound distress of the directors, the detectives employed on the case declared in no uncertain terms that there was but one man who could explain the shortage. That man was the former president of this old and reliable concern, James W. Hildebrand.

To avoid a scandal and also to spare if possible the man they all loved and respected, Mr. Stevens was authorised by the other directors to effect a compromise of some sort whereby the company might regain at least a portion of the funds on the promise not to prosecute. The defendant, however, had got wind of the discovery, and, to the utter dismay of his

friends, fled like a thief in the night. Mr. Stevens did not have the chance to see him.

The defalcation was not made public for several weeks. An effort was made to get in touch with the fugitive, in the hope that he could be induced to return without being subjected to open disgrace, but he had vanished so completely that at first it was feared he had made way with himself. He was at the time a widower, his wife having died many years before. His son James was the only child of that marriage, and he was living—or rather dying, in Colorado. Private detectives watched the home and the movements of the son for some weeks, hoping to obtain a clue to the old man's whereabouts.

Then, out of a clear sky, as it were, came letters to each of the stockholders, posted in Paris and written by the fugitive. In these letters he made the most unfair charges against the witness and against Mr. Drew. Without in any way attempting to explain, confess or express regret for his own defection, he horrified both Mr. Stevens and Mr. Drew with the staggering accusation that they had tricked him into selling certain downtown property at an outrageously low figure, when they knew at the time of the transaction that an insurance company had its eye on the property with the view to erecting two mammoth office buildings on the ground. Subsequent events, declared the writer, bore out his contention, for it was on record that his two partners did sell to the insurance company for nearly ten times the amount they had paid him for the property; and, moreover, at that very moment two large buildings were standing on the ground that had once been occupied by his ancient and insignificant six story structures.

In so many words, this old defaulter (to use Mr. Stevens' surprisingly acid words) deliberately sought to discredit them in the eyes of their fellow-directors and stockholders. He accused them of foul methods and actually had the effrontery to warn all those interested in the business with them to be on their guard or they would be tricked as he had been. (Note: One of these letters, now five years old, was introduced in evidence as Exhibit A.)

Sampson afterwards found himself marvelling over the assistant district attorney's stupidity in introducing this particular bit of evidence. It was the cross-examination that opened his eyes to the atrocious mistake the State

had made in volunteering the evidence touching upon the real-estate transaction.

This extraordinary behaviour on the part of the defendant quite naturally irritated—(Mr. Stevens would not say infuriated, although Mr. O'Brien, on cross-examination, tried his level best to make him use the word)—both the witness and Mr. Drew, who felt that their honour had been vilely attacked. They had no difficulty in convincing their partners and other interested persons that the charge was ridiculous and made solely for the purpose of enlisting their sympathy in behalf of one they were now forced to describe as a cowardly criminal and no longer as a misguided unfortunate.

It was then, and then only, that the witness and Mr. Drew took the matter before the Grand Jury and obtained the indictment against the defendant.

Having covered the preliminary stages of the case pretty thoroughly, Mr. Stevens was required to tell all that he knew about the actual misappropriation of the funds. This he did with exceeding clarity and sorrow. However, despite his mildness, he did not leave a shred of Mr. Hildebrand's honour untouched; he had it in tatters by mid-afternoon and at four o'clock, when court adjourned, there wasn't anything left of it at all.

Sampson was gloomy that night. He did not go to sleep until long after two, although he went to bed at eleven—an unspeakably early hour for him. Things certainly looked black for the old man. If Stevens was to be believed, James Hildebrand was a most stupendous rascal. And yet, to look at him—to study his fine, gentle old face, his tired but unwavering eyes, his singularly unrepentant mien—one could hardly be blamed for doubting the man's capacity for doing the evil and reprehensible deed that was laid at his door. Sampson hated to think of him as guilty. More than that, he hated to have Miss Hildebrand think that he thought of him as guilty.

He laid awake for three mortal hours trying to think what Miss Hildebrand meant by looking at him as she did from time to time. Not once but a score of times her gaze met his—usually after a damaging reply by Mr. Stevens, or some objectionable question by the district attorney—and always she appeared to be intent on divining, if possible, just what its effect would be on him.

Her clear, soft eyes looked straight into his for an instant, and he saw something in them that he took for anxiety. That was all: just anxiety. It couldn't, of course, be anything else—and, why shouldn't she be anxious? Anybody would be under the circumstances. As a matter of fact, he was a little anxious himself, and certainly he was not as vitally interested as she in the welfare of James W. Hildebrand. But after thinking it all over again, he wasn't so sure that it was anxiety. He was forced to believe that she looked confident, almost serene—as if there was not the slightest doubt in her mind that her grandfather couldn't possibly have done a single one of the things that Mr. Stevens accused him of doing.

Sampson was perturbed. He couldn't divest himself of the suspicion that she expected him to also disbelieve every word that the witness uttered. It was most upsetting. He made up his mind that he would not look at her at all on the following day. But even that resolution didn't put him to sleep. Not at all. The more he thought of it, the wider awake he became.

True, she had looked at the other jurors from time to time—especially at the rehabilitated No. 7, the rubicund bachelor and the spectacled No. 12. But he was sure that she did not look at them in the same way that she looked at him, nor as often, nor as long. It seemed to him that even when she looked at the others, she always allowed her glance to return to him for an instant after its somewhat indifferent tour of inspection. He remembered indulging in a rather close and critical inspection of the countenances of his fellow jurors at one time, during a lull in the proceedings, and that calculating but not unkind scrutiny convinced him of one thing: they certainly were not much to look at.

The more he thought about it, the more it was revealed to him that the expression in her eyes was of a questioning, inquiring nature, as one who might be saying to herself: are these men—or this one, in particular—entirely devoid of intelligence?

He was four minutes late in court the next morning, and it was all the fault of the too indulgent Turple. Turple, being a sagacious and faithful menial, respectfully neglected to disturb his master's slumber until after nine o'clock, and as a result Sampson had to go without his breakfast and almost without his shave in order to get down to the court-room in time.

Turple received emphatic orders to rout him out of bed at seven o'clock every morning after that, no matter how bitterly he was abused for doing so.

He was out of breath when he dropped into his chair in the jury box, expecting and dreading a rebuke from the Court for his tardiness. He glanced at Miss Alexandra Hildebrand, almost apologetically. It certainly was not relief that he felt on discovering that she was paying no attention whatever to him. She was engaged in consultation with the two lawyers and did not even so much as glance in his direction when he popped into his seat.

The justice was still on his good behaviour. He bowed politely to Sampson and then looked at the clock.

The cross-examination of Mr. Stevens began. Sampson was agreeably surprised by the astuteness, the suavity, the unexpected resourcefulness of Mr. O'Brien, who questioned the witness.

"You say, Mr. Stevens, that James Hildebrand, Jr., retired from the company about two years prior to the retirement of his father, the defendant. Why did the younger Hildebrand retire?"

"He was not satisfied with the reorganisation."

"Isn't it true that you and he were not on friendly terms and that he refused to serve with you—"

"We object!" interrupted the district attorney. "The question is not—"

"Objection overruled," said the Court testily. "Finish your question, Mr. O'Brien, and then answer it, Mr. Witness."

"We were not on friendly terms," admitted Mr. Stevens, who looked vaguely surprised on being addressed as "Mr. Witness."

"And he preferred to get out of the company rather than to serve on the board with you? Isn't that true?"

"I cannot answer that question. I can only say that he disposed of his interests and retired."

"Who purchased his stock?"

"Mr. Schoolcraft, one of the directors."

“Who owns that stock to-day?”

“I do.”

“When did you purchase it of Mr. Schoolcraft?”

“I do not remember.”

“Was it a week, a month or a year after the original sale?”

“A couple of months, I suppose.”

“Do you know what Mr. Schoolcraft paid for that stock?”

“I do not.”

“You do know what you paid him for it, however?”

“I paid ninety-five and a fraction for it.”

“Didn't you buy twenty shares of Mr. Schoolcraft's stock at the same time?”

“I did.”

“Did you pay ninety-five and a fraction for the Schoolcraft stock?”

“I think I paid a little more than that.”

“Didn't you pay one-twenty-seven for the Schoolcraft stock, Mr. Stevens?”

“I may have paid that much. Mr. Schoolcraft was not eager to sell. He held out for a stiff price.”

“He owned the Hildebrand stock, didn't he? Why should he sell fifteen shares at ninety-five and a fraction when he might just as well have had one-twenty-seven?”

“We object,” said the district attorney mildly.

“State your objection,” said the Court. “Incompetent and irrevelant and having no possible bearing on the subject—”

“Withdraw the question,” said Mr. O'Brien suavely. “Did you not offer James Hildebrand, Jr., one-ten for his stock, Mr. Stevens, through his father? I say 'through his father' because you were not on speaking terms with the son?”

“I think I did.”

“And didn't young Hildebrand send word that he wouldn't sell to you at any price?”

“Something of the sort. He was unreasonable.”

“You were, therefore, very much surprised and gratified to get it at ninety-five and a fraction from Mr. Schoolcraft later on, were you not?”

“I was not surprised,” confessed Mr. Stevens, separating his finger tips for the first time, and shifting his position so that he could fold his arms comfortably. “Mr. Schoolcraft bought the stock for me. There was no secret about it. Hildebrand must have known that Schoolcraft was acting for me. I was fair enough to offer him one-ten. It is not my fault that he was eventually forced to sell fifteen points lower. I was not to blame because he was hard-pressed or pinched for ready money.”

“He was a sick man, wasn't he?”

“His health was poor.”

“He was ordered to Colorado by his physicians, wasn't he?”

“I believe so.”

“And wasn't that the real reason why he was forced to sell out, and not because he objected to the reorganisation?”

“We object,” said the Stated attorney. “Objection sustained.”

Sampson looked at Miss Hildebrand. Her gaze shifted from the Court to him almost in the same instant, and it seemed to express astonishment, even incredulity—as if she were saying (although he was sure she would not have expressed herself so vulgarly): “Well, can you beat that!”

“And now, Mr. Stevens,” went on Mr. O'Brien, after taking the usual exception, “you testified in direct examination that you and Mr. Drew purchased the defendant's Manhattan property. Did you buy it for the Cornwallis Realty and Investment Company, or for yourselves as individuals?”

“We bought it for ourselves, as individuals.”

“The company was not interested in the transaction?”

“No.”

“Did you first give the company an opportunity to buy, or did you—”

“I said it was a private transaction. We have interests outside of the company, sir—just as you have interests outside of your legal business,” said the witness tartly.

“I see. Well, Mr. Hildebrand was pressed for money at the time of the transaction, I believe you have said. This was some time before the alleged defalcation took place, I understand.”

“A year and a half prior to our discovery of the theft,” corrected Mr. Stevens.

“And you have testified that the so-called theft dated back even beyond that, at its beginning.”

“So the expert accountants informed us. I have no means of knowing for myself.”

“And it was your conclusion that he sold his property in the effort to rehabilitate himself before his misfortune was discovered?”

“I did not allude to it as a misfortune, sir.”

“Well, then, his crime.”

“I have said that such was my conclusion.”

“Will you again, state just what you paid for the property in question?”

“We paid two hundred thousand dollars for the two pieces.”

“Cash?”

“Part in cash and part in an exchange for property in the Bronx. Sixty thousand in cash. The Bronx property is in the shape of building lots, valued at more than two hundred thousand dollars.”

“Then or now?”

“Then *and* now, sir.”

“State, if you know, does Mr. Hildebrand still own this Bronx property?”

“I believe it is in his name.”

“And it is still worth two hundred thousand dollars?”

“It is worth a great deal more, sir.”

“I see. Now, Mr. Stevens, you have testified that this defendant wrote letters to the several members of your corporation, advising them that you and Mr. Drew had sold this downtown property to an insurance company for ten times as much as you paid him for it. Was Mr. Hildebrand uttering the truth when he made that assertion?”

“Am I obliged to answer that question, your Honour?”

“Yes. It is a very simple question,” said the Court drily, giving his moustache a gentle twist.

“We received one million eight hundred thousand for the property,” said Mr. Stevens, defiantly.

“Cash?”

“Yes.”

“You didn't take any Bronx property in exchange?”

“Certainly not.”

“How long was this after the time you purchased the property?”

“About two years.”

“Isn't it true that you were offered a million dollars for the property two weeks after you bought it?”

“What has all this got to do with the case?”

“You can say yes or no, can't you, Mr. Stevens?”

“I shall say no, then. We were approached by persons representing the insurance company, but they made no bona fide offer.”

“They asked you if a million would tempt you, though, didn't they?”

“I don't remember.”

“In any event, you told them that you held the property at two millions, didn't you? That was your price?”

“It was our price, yes.”

“And you held off selling until they finally came to your terms—or nearly up to them—and then you sold?”

“We sold when we were ready, Mr. O'Brien.”

“I see. Did you know before purchasing Mr. Hildebrand's property that this insurance company was desirous of buying it for building purposes?”

“Object!” interposed the district attorney. “Objection sustained,” said the Court.

Again Sampson, who was enjoying Mr. Stevens' discomfiture, looked at Miss Hildebrand. Simultaneously eleven other gentlemen sitting in two parallel rows, looked at her. She may have found it too difficult to look at all of them at once, so she confined her gaze to Sampson, who felt in duty bound—as a juror sworn to be fair and impartial—to look the other way as quickly as possible. He was sorry that he was obliged to do this, for there was something in her eyes that warranted quite a little time for analysis.

The cross-examination proceeded. Sampson, resolutely directed his gaze out of its natural channel and devoted a great deal more attention to the witness than he felt that the witness deserved. He could not help feeling, however, that he was treating Miss Hildebrand with unnecessary boorishness. No doubt she looked at him from time to time, and she must have felt a little bit hurt, not to say offended—by his somewhat conspicuous indifference.

Suddenly he pricked up his ears. Mr. O'Brien had put to the witness a question that had something of a personal interest in it.

“James Hildebrand, Jr., lost his wife in 1906, did he not, Mr. Stevens?”

“I don't remember the year.”

“You remember when he was married, however, do you not?”

“I can't say. I think it was in 1888.” The witness had turned a rather sickly green. He spoke with an effort.

“The year after you and he graduated from college, wasn't it?”

“We were in the class of '87.”

“You are still unmarried, I believe, Mr. Stevens?”

“I am unmarried, sir,” said the witness, sitting up a little straighter in the chair.

“Did you know Miss Katherine Alexander before she was married to James Hildebrand?”

“I did,” said Stevens, his face set.

Sampson ventured a swift look at Alexandra Hildebrand. She was looking down at the table, her face half averted. It struck him as exceedingly brutal of Mr. O'Brien to drag this poor girl's dead mother into the public light of—But the lawyer asked another question.

“You and young Mr. Hildebrand remained friends for a number of years after his marriage, did you not?”

“I always thought so.”

“You never bore him any ill will?”

“What do you mean?”

“I withdraw the question. When was it that you and James Hildebrand, Jr., ceased to be friends?”

“I—I don't know. I cannot go into that matter, Mr. O'Brien. I—” Mr. Stevens was visibly distressed.

“Wasn't it in 1895 that you and he ceased to be friends?” persisted the lawyer.

“There was a terrible misunderstanding, I—that is, I should say—”

“In 1895, wasn't it?”

“I think so.” Mr. Stevens was perspiring. He looked beseechingly at the district attorney, who happened to be gazing pensively out of the window at the time.

“You were a frequent and welcome visitor at young Hildebrand's home up to 1895, weren't you?”

“It was through no fault of mine that the friendship was broken off. Mr. Hildebrand behaved in a most outrageous manner toward me.”

“Isn't it true, Mr. Stevens, that Mr. Hildebrand ordered you out of his house and told you that you were not to enter it again?”

“Mr. Hildebrand grievously misunderstood my—”

“Answer the question, please. Were you not ordered out of your friend's house?”

“Am I obliged, your Honour, to answer—”

“Answer yes or no,” said the Court, leaning forward and fixing the witness with a very severe stare. (Sampson regarded him as distinctly human, after all.) Miss Hildebrand's, eyes were still lowered. The aged prisoner, however, was looking a hole through the now miserable witness.

“He threatened to kill me,” exclaimed Stevens violently. “He acted like a crazy man over a perfectly innocent—”

“He ordered you out, didn't he?” came the deadly question.

Mr. Stevens swallowed hard. “Yes.”

“And you maintain that he took that step because he misunderstood something or other, eh?”

“Most certainly.”

“Well, what was it he misunderstood?”

“I must decline to answer. I stand on my rights.”

“Wasn't it because Mrs. Hildebrand complained to him that you had been—er—unnecessarily offensive to her?”

“I decline to answer.”

“In any event, you never entered his house again, and you never spoke to him or his wife after that. Isn't that true?”

“I was justified in ignoring both of them. They insulted me most—”

“I understand, Mr. Stevens. We will drop the matter. I have no desire to cause you unnecessary pain. Now will you be good enough to state when you first noticed that there was something wrong with the books and accounts of the defendant? What first caused you to suspect that the funds were being juggled, as you put it in the direct examination?”

Mr. Stevens had an easier time of it after that. He resumed his placid, kindly air, and maintained it to the end, although a keen observer might have observed an uneasy respect for Mr. O'Brien. He appeared to be relieved when the examination was concluded.

Sampson went out to luncheon in a more cheerful frame of mind. It was quite clear to every one that Mr. Stevens was guilty, at least circumstantially, of conduct unbecoming a gentleman.

CHAPTER III

Two days went by. Mr. Drew, Mr. Schoolcraft and Mr. Kauffman were examined and cross-examined, and after them came the first of the expert accountants employed to go over the books. The situation continued to look black for Mr. Hildebrand—if anything a little blacker, for neither of the foregoing witnesses appeared to have been guilty of offending a lady to such an extent that her husband had to order him out of the house.

Mr. Drew received considerable unpleasant attention from the defendant's counsel, but he came through pretty comfortably. He admitted that he “cleaned up more than half a million” on the deal with the insurance company, and that he was the husband of Mr. Stevens' sister. He always had been sorry for Mr. Hildebrand, and even now was without animus. Mr. Schoolcraft acknowledged buying and selling the younger Hildebrand's shares, but was positive that there had been no collusion with Mr. Stevens.

The case began to drag. Sampson lost interest. He attended strictly and no doubt diligently to the evidence, but when the expert accountants began to testify he found himself considerably at sea. He was not good at figures. They made him restless. The rest of the jury appeared to be similarly afflicted. Politeness alone kept them from yawning. Afterwards it was revealed that only one of the twelve was good at figures of any sort: the automobile salesman. He was a perfect marvel at statistics. He could tell you how many miles it is from New York to Oswego without even calculating, and he knew to a fraction the difference in the upkeep of all the known brands of automobiles in America. He made Sampson tired.

Despite the damaging testimony that seemed surely to be strangling her grandfather's chances for escape, Miss Hildebrand revealed no sign of despair, or defeat. She came in each morning as serene as a May evening, and she left the court-room in the afternoon with a mien as untroubled as when she entered it. .

There was quite a little flutter in the jury box—and outside of it, for that matter—when, on the third morning, she appeared in a complete change of costume—a greyish, modish sort of thing, Sampson would have told you—

very smart and trig and comforting to the masculine eye. Sampson who knew more than any of his companions about such things, remarked (to himself, of course)—that her furs were chinchilla. Chinchilla is nothing if not convincing.

It struck him, as he took her in—(she was standing, straight and slim, conversing with that beardless cub of an assistant-assistant district attorney)—that she was, if such a thing were possible, even lovelier than she was in the other gown. No doubt Sampson failed in his sense of proportion. She was undeniably lovelier today than yesterday, and she would continue to go on being prettier from day to day, no matter what manner of gown she wore.

It also occurred to him that the young assistant-assistant was singularly unprofessional, if not actually fresh, in dragging her into a conversation that must have been distasteful to her. He wondered how she could smile so agreeably and so enchantingly over the stupid things the fellow was saying.

Near the close of the noon recess he was constrained to reprove No. 7 for an act that might have created serious complications. He was standing in the rotunda finishing his third cigarette, when Miss Hildebrand approached on her way to the court-room. It had been his practice—and it was commendable—to refrain from staring at her on occasions such as this. A rather low order of intelligence prevented his fellow jurors from according her the same consideration. They stared without blinking until she disappeared from view.

Now, No. 7 meant no harm, and yet he so far forgot himself that he doffed his hat to her as she passed. Fortunately she was not looking in his direction. As a matter of fact, she never even so much as noticed the nine or ten jurors who strewed her path. No. 7 was mistaken, there can be no doubt about that. He thought she looked at him instead of through him, and in his excitement he grabbed for his hat. Perhaps he hoped for a smile of recognition, and, if not that, a smile of amusement. He would have been grateful in either case.

“Don't do that,” whispered Sampson, gruffly.

“Why not?” demanded No. 7, blinking his eyes. “No harm in being a gentleman, is there?”

“You must not be seen speaking to her—or to any one of the interested parties, for that matter. Do you want to have her accused of bribery or—er—complicity?”

“I thought she was going to speak to me,” stammered No. 7.

“Well, she wasn't. She has too much sense for that. Good Lord, if counsel for the State saw you doing that sort of thing, they'd suspect something in a second.”

“Haven't you read about those jury-fixing scandals?” exclaimed the chubby bachelor, surprisingly red in the face. He had almost reached his own hat when Sampson spoke. Four or five of the others glowered upon the offending No. 7. “We can't even be seen bowing to anybody connected with the case.”

“I saw you throw your cigar away when she came in the door,” retorted No. 7, in some exasperation. “What did you do that for?”

The chubby bachelor looked hurt. “Because I was through with it,” he said. “I don't hang onto 'em till they burn my lips, you know.” He deemed it advisable to resort to sarcasm.

“Just remember that you are a juror,” advised No. 4 in a friendly tone. One might have thought he was compassionate.

“No harm done,” said No. 12. “She didn't even see you. I happen to know, because she was lookin' right at me when you took off your lid. You didn't notice me fiddling with my head-piece, did you? I guess not. She don't expect us to, and so I didn't make any crack. I—”

“I'd suggest,” said Sampson, with dignity, “that we devote a certain amount of respect to the ethics.”

It was a little puzzling. Ethics is a word that calls for reflection. You've got to know just what it means, and after you know that much about it, you've got to fix its connection. Several of the gentlemen nodded profoundly, and two of them said: “Well, I should say so.” That night Sampson sat alone in front of his fireplace, his brow clouded by uneasy, disturbing thoughts. A woodfire crackled and simmered on the huge Florentine andirons. Turple, coming in to inquire if he would speak with Mrs. Fitzmorton on the telephone, was gruffly instructed to say that he was

not at home, and when Turple returned with the word that Mrs. Fitzmorton was at home and still expecting him to dine at her house that evening, notwithstanding the fact that her guests and her dinner had been waiting for him since eight o'clock—and it was now 8:45—Sampson groaned so dismally that his valet was alarmed. The groan was succeeded, however, by a far from feeble expression of self-reproach, and a tremendous scurrying into overcoat and hat. He reached Mrs. Fitzmorton's house—it happened to be in the next block north—in less than three minutes, and he was so engagingly contrite, and so terribly good-looking, that she forgave him at once—which was more than the male members of the party did.

They were all married men and they couldn't forgive anybody for being late. They were always being implored, either pathetically or peevishly, to stop complaining.

Sampson had cause for worry. He had been slow in arriving at the truth, but that afternoon his conviction was established. Miss Hildebrand was depending on him to swing that jury!

She was counting on his intelligence, his decision, his insight, his power to see beyond the supposed facts in the case as presented by the witnesses for the State. He was sure of it. There was nothing in the cool, frank scrutiny that she gave him from time to time that could be described by the most critical of minds as even suggestive of a purpose to influence him, and yet he was sure that she depended on his good sense for a solution of all that was going on.

What disturbed him most was this: there was no distinction between the look she gave him when the State scored a point and when the condition was reversed. The same confident, reasoning expression was in her lovely eyes, as much as to say: "You must see through all this, No. 3—of course you must, or you couldn't look me in the eye as you do."

It was as clear as day to him: she was certain that her grandfather was incapable of doing the thing he was charged with doing, and she could not see how a man of his (Sampson's) perception could possibly think otherwise.

The revelation caused him to forget all about his dinner engagement. Also it caused him to pass an absolutely sleepless night. When he closed his

eyes she still looked into them—always the same clear, understanding, undoubting gaze that he had come to know so well. When he lay with them wide open, staring into the darkness, the vision took more definite shape, so he closed them tightly again.

Turple noticed his haggardness the next morning and was solicitous. Now, Turple, at his best, was not entitled to a stare of any description. But Sampson's rapt gaze was so prolonged and so singularly detached from the object upon which it rested—Turple's countenance—that the poor fellow was alarmed. He had never seen his master look just like that before. Later on, Sampson told him to go to the devil. Turple was relieved.

The accountants, the detectives and two bookkeepers who formerly had worked under Mr. Hildebrand testified and then the State rested. Through it all the prisoner sat unmoved. Sampson wondered what was going on in the mind of that gaunt, fine-faced old man. What would be his answer to the damning evidence that stood arrayed against him? What *could* be his defence!

He was sorry for him. He would have given a great deal to be able to rise now from his seat in the jury box and announce candidly that he did not feel that he could bring in a verdict against the old man, reminding the Court and the district attorney that he had said in the beginning that he could not answer for his sympathies.

During the noon recess he took account of his fellow jurors. They were a glum, serious looking set of men. He knew where their sympathies lay and, like himself, they were depressed. The justice—even he—had lost much of the geniality that at the outset had warmed the atmosphere. He no longer smiled; no more did he exploit his wit, and as for his brisk moustache, it drooped.

To the amazement of every one, the defendant's counsel announced that they had but one witness: the prisoner himself. And every one then knew that no matter what the prisoner said in his own defence, his testimony would be unsupported; it would have to stand alone against odds that were overwhelming.

Slowly but surely it became evident to these more or less discerning men that James Hildebrand's plea would be for sympathy and not for

vindication. By his own story of the dealings with Stevens and Drew and the others he hoped to reach their hearts and through their hearts a certain sense of justice that moves in all men's minds.

Sampson's heart sank. While he was convinced that the old man had been cruelly tricked by his business associates, that they had squeezed him dry in order to profit by his misery, that Stevens at least was actuated by a personal grudge which found relief in crushing the father of the man he hated, and that the others may have been innocently or pusillanimously influenced by the designs of this one man who sought control, there still remained the fact that Hildebrand, according to the evidence, had violated the law and was a subject for punishment—if not for correction, as the prison reformers would have it in these days. In no way could the old man's act be legally or morally justified. Sampson, after hearing the announcement of his counsel, realised that he would have a very unpleasant duty to perform, and he knew that he was going to hate himself.

He had never spoken a word to Alexandra Hildebrand; he had not even heard the sound of her voice—her conversation with counsel was carried on in whispers or in subdued tones—And yet he was in love with her! He was the victim of a glorious enchantment.

And he knew that No. 7 was in love with her—foolishly in love with her; and so was the once supercilious No. 12; and the chubby bachelor; and No. 9 who wanted to stay off the jury because he had to get married in three weeks; and No. 8 who had two sons in the high school, one daughter in Altman's and two wives in the cemetery; and the sombre-faced No. 1; and all the rest of them! No. 2, who chewed gum resoundingly, no longer chewed. His jaws were silenced. He had an impression that Miss Hildebrand disapproved of gum-chewing, so he stopped. More than this, no man could sacrifice.

The spruce young men from the district attorney's office were visibly affected—(they really were quite sickening, thought Sampson); and the deputy clerk, the court-room bailiffs, and the stripling who carried messages from one given point to another with incredible speed, now that he had something to keep him moving.

All of them, in a manner of speaking, were in love with her. And she was not in love with any one of them. There could be no doubt about that. They

meant absolutely nothing to her.

Sampson wondered if she had a sweetheart, if there was some one with whom she was in love, if those dear lips—and he sighed bleakly. He hated, with unexampled venom, this purely suppositious male who harassed him from morning till night. Common-sense told him that she must have a sweetheart. It was inconceivable that she shouldn't possess the most natural thing in the world. She just couldn't help having one. What sort of a fellow was he? Of course, he didn't deserve her; that was clear enough, assuming that the fellow actually existed. In his present frame of mind, Sampson could think of only one man in the world who might possibly be deserving of her.

Nevertheless, he felt that he was behaving in a silly, amateurish manner, falling in love with her like this. It was to be expected of ignorant, common louts such as No. 7—a very ordinary jackass!—and the other ten men in the box, to say nothing of the suddenly adolescent yet middle-aged horde outside. It was just the sort of thing that they would be certain to do. They were a fatuous—but there he stopped, scowling within himself. What right had he to call these other men fools? He was no better than they. Indeed, he was worse, for he always had believed himself to be supremely above such nonsense as this. They made no pretensions. They fell in love with her just as they would have fallen in love with any pretty girl—and, Heaven knows, pretty girls are always being fallen in love with. But that he, the unimpressible, experienced Sampson, should lose his heart—and head—over a girl who had never spoken a word to him, whom he had never seen until six days before, and who doubtless would go out of his life completely the instant the trial was over—why, it ought to have been excruciatingly funny. But it wasn't funny.

It was very far from funny. Putting one's self in a class with No. 7 and No. 12 and the rest of them was certainly not Sampson's idea of something to laugh at. So he scowled ominously every time he chanced to think of any one of them—which happened only when Miss Hildebrand deigned to look at that particular individual.

And he would have to send her beloved grandfather to the penitentiary. He would have to hurt her; he would have to bring pain and despair and, worse than these, astonishment to her beautiful eyes. He knew that he

would be haunted for the rest of his life by the look she would give him when the verdict was announced.

James Hildebrand went *on* the stand on the afternoon of the sixth day. A curious hush settled over the court-room. Men shifted in their chairs and then slumped down dejectedly, as if oppressed by the utter futility of the tale he would have to tell. Alexandra Hildebrand alone was bright-eyed and eager. Her lips were slightly parted as the old man, grey and erect, took the oath. She knew that the truth and nothing but the truth could fall from the lips of this gentle old grandfather of hers. Now they would have the truth! Now the case would crumble! She sent one swift, reassuring look through the jury box, and, for the first time, gazed into no man's eyes. She was puzzled. Every face was averted. Long afterwards she may have recalled the queer little chill that entered her heart, and stayed there for the briefest instant before passing.



She sent one swift, reassuring look through the jury box



The defendant's voice was low, well-modulated, unemotional; his manner simple and yet impressive. Throughout the entire story that he told, his hearers listened with rapt attention.

She sent one swift, reassuring look through the jury box.

They were hoping that he could convince them. They watched his fine, distinguished face; they watched his sombre, unflinching eyes; they watched his steady hands as they rested on the arms of the chair; they watched him with fear in their hearts: the fear that he would falter and betray himself.

He entered a simple, direct denial of the accusation made against him. His story was not a long one, and it would have to go uncorroborated, for, as he said himself, there was no one upon whom he could call for support.

In the first place, he declared that he did not know that he was suspected of having robbed his partners until after many months had passed. He was aware of the investigation, but it had never entered his head that he could be the person under suspicion. He admitted taking a hurried and perhaps ill-advised departure from New York, and, in answer to a direct question from his own counsel, declared that he would never reveal his reason for leaving so secretly and in such haste.

Facing the jury he stated calmly, deliberately and in a most resolute manner that he would go to prison for the rest of his days, that he would suffer lasting ignominy and disgrace, before he would publicly account for this action on his part.

When he learned that a true bill had been returned against him by the Grand Jury, his first impulse was to return to his own country and fight the charge. Reflection convinced him that he was safe as long as he remained in his sequestered home in Switzerland, and he made up his mind to remain there and die with unlifted disgrace bearing down upon his good name rather than to return and face the probability of having to account for his absence. That, and that alone, was responsible for his decision to remain where he was. No one knew of his whereabouts, not even his own kith and kin. He was as safe as if he were already dead. Then, in solemn, unforgettable tones he declared that he had never taken a penny belonging to the Cornwallis Realty and Investment Company, that he was innocent of the charge brought against him, notwithstanding the fact that appearances were sufficient to convict.

Time brought a change in him. He decided to return and face his accusers. He did not hope to convince them that he was innocent. He only wanted the opportunity to stand before the world and proclaim his innocence. He had no testimony to offer. He could only say that he had not done this monstrous thing of which he was accused.

His testimony was given as a simple statement. He was allowed to tell his brief story without the interpolation of a single question by his counsel. Succinctly but with scant bitterness, he recited the story of his own unfair treatment at the hands of his former partners. He touched very casually upon that phase of the matter, as if it were of small consequence to him now. There were no harsh words for the men who had tricked him. One

could not help having the feeling that he looked upon them as beneath his notice.

He came home of his own free-will, after years of deliberation. He had been influenced by no one in this singular crisis. He was alone in the world. Except for his beloved granddaughter, there was no one else who could suffer through the result of this trial. He was prepared to accept the verdict of the twelve gentlemen who listened to him and who had listened to the testimony of others before him.

There was not a sound in the court-room when he paused and drew a long deep breath. Every eye was upon him. Then, in a clear, resonant voice he said:

“Gentlemen, I repeat that I am absolutely innocent of this charge. I ask you to believe me when I say this to you. If you do not believe me, I must be content to accept your judgment. I do not ask you to discredit the testimony of the men who have appeared against me. They have told all they know about the circumstances, I dare say, and I am convinced that they are honest men. They have only shown you that there was a colossal theft, that a large sum of money is unaccounted for in their business. They have not shown you, however, that I am the man who took it. They have only shown you that fifty thousand dollars is missing and unaccounted for. I admit I was responsible as treasurer of the company for the safe-keeping and guardianship of all that money. It disappeared. I can only say to you, gentlemen, that I did not take it.”

His voice was husky. There was a long pause, and then he settled back in his chair and turned wearily to the district attorney for cross-examination. It was then that the crowd knew he had finished his story. A deep breath came from the lips of every one, as if for many minutes it had been withheld.

Sampson's gaze involuntarily sought Alexandra Hildebrand's face. He did not mean to look at her. He could not resist the impulse, however. It was stronger than the adamant resolution he had made. The light of triumph was in her glowing eyes, the flush of victory in the cheek. Her grandfather had cleared himself!

Sampson's heart ached as it sank to depths from which it would never rebound. He turned hopelessly to the man in the witness chair, and waited

for the district attorney to open his grilling cross-examination. He knew what the State would demand: why did he go away? Who replaced a large portion of the amount originally missing? Why did he sell his real-estate and his interest in the business? A hundred vital questions would be discharged at him, and he would—But, even as he delved in these dismal reflections, the district attorney arose in his place and said, clearly, distinctly—although no man at first believed his ears:

“No questions, your Honour.”

There was utter silence while this amazing announcement sank into the minds of the listeners. Counsel for the defence sat rigid and uncomprehending in their chairs; the justice leaned forward and stared; the prisoner's eyes widened for a second and then slowly closed. His chin fell; his attitude was one of acute humiliation. His story was not even worthy of notice! No questions! The acme of derision!

Argument by counsel followed, the beardless “assistant-assistant” making the opening address to the jury. He floundered badly. Sampson derived some consolation from his futile, feeble arraignment. If the principal attorney for the State didn't do a great deal better than his singularly ineffectual confrere, there was still hope that the prisoner's counsel might by impassioned pleas stir the hearts of twelve men to mercy. The sympathies of all were—But even as he speculated on the probable lengths to which sympathy would carry his companions in arriving at a verdict, there suddenly flashed into his brain a vast illumination. James W. Hildebrand was not guilty! He was shielding some one else! His reluctance to tell why he left New York was explained. He could not tell without betraying a secret that must forever remain inviolate! Sampson breathed easier. Why, it was as plain as day to him! At least, it was something on which to base a conclusion. It might come in very handy too when the jury, in seclusion, began to grope for a favouring light. On reflection they would all agree that no witness actually had sworn that Hildebrand took the money. The evidence was decidedly circumstantial. By deduction alone was he guilty. On the other hand he had solemnly sworn that he didn't take it. And if he didn't take it, who did? That, said Sampson, was a very simple thing to answer: Some person unknown to the jury.

Miss Hildebrand's spirits undoubtedly fell after that significant move of the State. There was an anxious, bewildered expression in her eyes, and a rather pathetic droop at the corners of her adorable mouth.

The argument proceeded. Mr. O'Brien made the closing speech for the defendant. Her spirits revived under the eloquent, fervent plea of the now brilliant Irishman. Sampson experienced a feeling of real affection for the earnest, though unkempt orator, who more than once brought tears almost to the surface of his eyes. He had great difficulty in suppressing a desire to blubber, and, when he saw her velvety eyes swimming in tears, he blew his nose so violently that he started an epidemic. No. 7, instead of blowing his nose, sniffed so repeatedly and so audibly that every one wished he'd blow, and have it over with.

And when her eyes flashed with indignation during the uncalled-for tirade of the assistant district attorney, Sampson developed a bitter hatred for the man. When she appeared crushed and bewildered by the vicious attacks of the fellow, and shrank down in her chair like a frightened child, Sampson wanted to take her in his strong, comforting arms and—But, of course, there wasn't any use thinking about such a thing as that. It was not one of his duties as a juror.

The case went to the jury at four o'clock that afternoon, after a somewhat protracted and, to Sampson, totally unenlightening charge by the justice, who advised the jurors that they must weigh the evidence as it was found and forbear allowing their sympathies to overcome their sense of justice. And so on and so forth. He made it very hard for the jurors. If they went entirely by the evidence, there wasn't anything left for them to do but to find the defendant guilty. Sampson had hoped for ameliorating suggestions from the learned justice on which he could base a sensible doubt as to the guilt of the defendant.

But, in so many words, the justice announced that the preponderance of the evidence was in favour of the State. He told the jurors it was their duty and privilege to take the defendant's unsupported testimony for what they considered it to be worth and to place it in opposition to the evidence produced by the State. It was then their duty to render a fair and impartial verdict on the evidence.

As the twelve men filed out of the box on their way to the jury room, Sampson shot a glance at Alexandra Hildebrand. He would not see her again until he returned to the seat he had occupied for six days, and after that she was to pass out of his life entirely. He hoped that she would not be there when he came back with his verdict. It would be much easier for him. He did not attempt to deceive himself any longer. If he lived up to his notions of honour and integrity, there was but one verdict he could return. (He wondered if his companions would prove to be as rigid in this respect as he.)

She was looking in the opposite direction, her chin in her hand. She did not meet his unhappy gaze. He was grateful for that.

CHAPTER IV

W hatcheb say your name was?" demanded No. 8, aggressively.

"I didn't say," said Sampson coolly. "Call me No. 3, if you don't mind. I'll answer to it."

"Well, my name is Hooper, and that's what I want to be called."

"I'm not going to call you anything," said Sampson, turning away in his loftiest manner.

"Well, I guess it's just as well you don't," snorted No. 8, sticking out his chest, and it wasn't a very obtrusive chest at that. Putting it back to where it normally belonged was a much less arduous job for No. 8 than sticking it out. He couldn't have stuck it out at all if he hadn't possessed the backing of ten men.

In short, the jury had been out for seven hours and the last ballot stood eleven to one for acquittal. Sampson was the unit.

No. 12 tried diplomacy. "Say, now, fellers, let's get together on this thing. We don't get anywhere by knockin' Mr. Sampson. He's got a right to think as he pleases, same as we have. So let's be calm and try to get together."

"My God," groaned No. 1, "can you beat that? Eleven of us have been together since five o'clock this afternoon, and you talk about being calm. Now, as foreman of this jury, I think I've got some right to be heard. You'll admit that, won't you, Mr. Sampson?"

"Certainly. Up to this moment, I've had no difficulty in hearing you. It isn't necessary to shout, either. I'm not deaf."

"Now, let me talk," went on the foreman. "Keep still a minute, you fellers. Mr. Sampson is a gentleman. He's got as much sense, I suppose, as any of us. He—"

"Thanks," said Sampson.

"Well, here we are, 'leven to one. You admit that your sympathies are with the old man, same as the rest of us. You say you'd sooner be shot than

to send him up. Well, now let's—wait a minute, Hooper! I'm talking. Let's talk this thing over as friends. I apologise for what I said just after supper. You've got a right to be pig-headed. You've got a legal right to hang this jury. But is it right and fair? If 'leven of us are willing to go on record as—er—as putting credence in the testimony of Mr. Hildebrand, I can't see why you're afraid to come in with us. Down in your soul you don't think he's guilty. You say that maybe he is shielding some one else. If that's the way you feel, why not come out like a man and give the poor old lad the benefit of the doubt? Lord knows I'm a hard man. I don't want to see any guilty man escape. I believe in putting 'em where they belong, and keeping 'em there. By Gosh, nobody dares to say to my face that I'm easy on criminals. I'm as hard as nails. My wife says I'm as hard as all get-out. And she ought to know. She's heard me talk about crime here in New York for nearly fifteen years, and she knows how I feel. Well, if I am willing to give the old man a chance, it ought to stand for something, oughtn't it? Hard as I am? Just reason it out for yourself, Mr. Sampson. Now, we all agree that the evidence against him is pretty strong. But it is circumstantial. You said so yourself in the beginning. It was you who said that it was circumstantial. You said—just a minute, Hooper! You said that while everything pointed to him as the guilty man, nobody actually swore that he saw him take the money. On the other hand, he swears he didn't take it. He ought to know, oughtn't he? If he knows who did take it, why that's his business. I don't believe in squealers. I wouldn't have any mercy on a man who turned State's evidence to save himself. Well, now, supposing old man Hildebrand knows who got away with the stuff. He is too much of a man to squeal. We oughtn't to send him up just because he won't squeal on the man—a friend, for all we know—even though it might save him from going to the pen. I leave it to you, Mr. Sampson: ought we?"

"Of course we oughtn't," broke in the irrepressible Mr. Hooper. "Any damn' fool ought to see that."

Sampson eyed Mr. Hooper severely. "He's leaving it to me, Mr. Hooper; not to you." He leaned a little closer, his eyes narrowing. "And, by the way, Mr. Hooper, before we go any farther, I should like to call your attention to several facts entirely separate and apart from this trial. It may interest you to know that I am six feet one in my stocking feet, that I weigh one hundred and ninety-five pounds, that I am just under thirty years of age, that I was

one of the strongest men in college, and that up to a certain point I am, and always have been, one of the gentlest and best-natured individuals in the world.”

“What do you mean by that?” blustered No. 8.

“Gentlemen!” admonished the foreman. The automobile salesman stopped picking his teeth.

“I am merely trying to convince you, Mr. Hooper, that there is a great deal more to be said for circumstantial evidence than you might think. You might go on forever thinking that I am a meek, spineless saphead, and on the other hand you might have it proved to you that I'm not. Please reflect on what I have just said. It can't do you any harm to reflect, Mr. Hooper.”

“Oh, piffle!” said Mr. Hooper, getting very red in the face.

“Sic 'em!” said No. 12, under his breath.

“Moreover,” went on Sampson, smiling—but mirthlessly—“I am assuming that your exercises as a hat salesman are not such as one gets in a first-class gymnasium. I hope you will pardon me for asking you to repeat the word you just uttered. I think it was 'piffle.’”

Mr. Hooper grinned. He didn't feel like grinning but something psychological told him to do it—and to do it as quickly as possible. “Aw, don't get sore, old man. Forget it!”

“Certainly,” said Sampson.

The foreman seized the opportunity. “There, now, that's better. At last we seem to Be getting together.”

No. 7 spoke up. “This might be a good time to take another ballot. It's 'leven minutes to one by my watch. We stand 'leven to one. That's a good sign. Say, do you know that's pretty darned smart, if I do say it myself who —”

“Let's have Mr. Sampson's revised views on the subject and then take a final ballot for tonight,” said the foreman, wearily.

“I haven't revised my views,” said Sampson.

There were several draughty sighs. "I've stated them five or six times to-night, and I see no reason to alter them now. Deeply as I regret it, I cannot conscientiously do anything but vote for a conviction."

"Now, listen to me once more, Mr. Sampson," began the chubby bachelor. "I'll try to set you straight in—"

"See here," said Sampson, arising and confronting his companions, "we may just as well look this thing squarely in the face. I don't want to send him up any more than the rest of you do. But I am going to be honest with myself in this matter if I have to stay out here for six months. We've heard all of the evidence. It seems pretty clear to all of us that the defendant was responsible for the loss of that money, even if he didn't take it himself. He was the treasurer of the concern. He had absolute charge of the funds. So far as we are concerned the State has made out its case. We are supposed to be impartial. We are supposed to render a verdict according to the law and the evidence. We cannot be governed by sympathy or conjecture.

"When I left the court-room with the rest of you gentlemen to deliberate on a verdict, I will confess to you that I had in my heart a hope that you men would do just what you have done all along: vote for acquittal. When I came into this room seven hours ago, I was eager to vote just as you have voted. Then I began to reflect. I asked myself this question: how can I go back to that court-room and look the district attorney and the Court in the face and say that James Hildebrand is not guilty? If I did that, gentlemen, I am quite sure I could never look an honest man in the face again. We have all been carried away by our sympathies—I quite as much as the rest of you. I am convinced that there isn't a man among you who can stand up here and say, on his honour, that the evidence warrants the discharge of the defendant.

"God knows I want to set him free. I am inclined to believe his story. He is not the sort of man who would steal. But, after all, we are bound, as honest men, to carry out the requirements of the law. The Court clearly stated the law in this case. Under the law, we can do nothing else but convict, gentlemen.

"You, Mr. Foreman, have said that Hildebrand perhaps knows who took the money. You will admit that you are guessing at it, just as I am guessing. In his own testimony he was careful to say nothing that would lead us to

believe that he knows the guilty man. The State definitely charges him with the crime and it produces evidence of an overwhelming nature to support the charge. Against this evidence is his simple statement that he did not take the money. He had already pleaded not guilty. Is it to be expected of him, therefore, that he should say anything else but that he did not rob his partners?

“Only the criminals who are caught redhanded confess that they are guilty. The guiltiest of them go on the stand, as we all know, proclaiming their innocence, and, not one, but all of the men who go to the chair after making such pleas maintain with their last breath that they are innocent. Gentlemen, this is the bitterest hour in all my life. I want to set this old man free, but I cannot conscientiously do so. I took my oath to render a fair and impartial verdict. You all know what a fair and impartial verdict must be in this case. I shall have to vote, as I have voted from the beginning, for conviction.”

He sat down. No. 7, who was directly opposite him across the long table, leaned forward suddenly with an odd expression in his eyes. Then he blinked them.

“Why, by jingo, he's—he's crying!” he exclaimed, something akin to awe in his voice. “You got tears in your eyes, darn me if you haven't.”

There were tears in Sampson's eyes. He lowered his head.

“Yes,” he said gruffly; “and I am not ashamed of them.”

“Oh, come now, old feller,” said Mr. Hooper, uncomfortably; “don't make a scene. Pull yourself together. We're all friends here, and we're all good fellers. Don't—”

“I'm all right,” said Sampson coldly. “You see I'm not as hard-hearted as you thought. Now, gentlemen, I shall not attempt to argue with you. I shall not attempt to persuade you to look at the case from my point of view. As a matter of fact, I am rather well pleased with the attitude you've taken. The trouble is that it isn't going to help the poor old man. All we can do is to disagree, and that means he will have to be tried all over again, perhaps after many months of confinement. I should like to ask you—all of you—a few rather pointed questions, and I'd like to have square and fair answers from you. What do you say to that?”

“Fire away,” said the foreman.

“It's one o'clock,” said No. 7. “Supposin' we wait till after breakfast.”

“Gawd, I'm sleepy,” groaned No. 12.

“No,” said the foreman firmly; “let's hear what Mr. Sampson has to say. He's got a lot of good common sense and he won't ask foolish questions. They'll be important, believe me.”

They all settled hack in their chairs, wearily, drearily.

“All right. Go ahead,” sighed the chubby bachelor. “I'll answer any question except 'what'll you have to drink,' and I'll answer that to-morrow.”

Sampson hesitated. He was eyeing No. 7 in a retrospective sort of way. No. 7 shifted in his chair and succeeded in banishing the dreamy, faraway look in his eyes.

“Assuming,” began the speaker, “that we were trying a low-browed, undershot ruffian instead of James W. Hildebrand, and the evidence against him was identical with that which we have been listening to, would you disregard it and accept his statement instead?”

“The case ain't parallel,” said No. 8. “His face wouldn't be James W. Hildebrand's, and you can bank a lot on a feller's face, Mr. Sampson.”

The others said, “That's so.”

“That establishes one fact very clearly, doesn't it? You all admit that with a different sort of a face and manner, Mr. Hildebrand might be as guilty as sin. Well, that point being settled, let me ask you another question. If Miss Alexandra Hildebrand, the granddaughter who has faced us for six working days, were a sour-visaged, watery-eyed damsel of uncertain age and devoid of what is commonly called sex-appeal, would your sympathies still be as happily placed as they are at present?”

No man responded. Each one seemed willing to allow his neighbour to answer this perfectly unanswerable question.

“You do not answer,” went on Sampson, “so I will put it in another form. Suppose that Miss Alexandra Hildebrand had not been there at all; suppose that she had not been where we could look at her for six short consecutive days—and consequently think of her for six long consecutive nights—or

where she couldn't possibly have looked at us out of eyes that revealed the most holy trust in us—well, what then? I confess that Miss Hildebrand exercised a tremendous influence over me. Did she have the same effect upon you?”

Several of them cleared their throats, and then of one accord, as if moved by a single magnetic impulse, all of them said, in a loud, almost combative tone, “No!”

The chubby bachelor qualified his negative. “She didn't have an undue influence, Mr. Sampson. Of course, I liked to look at her. She's easy to look at, you know.” He blushed as his eyes swept the group with what he intended to be defiance but was in reality embarrassment.

No. 7: “I was awfully sorry for her. I guess everybody was.”

No. 9; “She's devoted to the old man. I like that in her. I tell you there's nothing finer than a young girl showing love and respect for—”

No. 12: “She's a square little scout. Take it from me, gents, she wasn't thinking of me as a juror when she happened to turn her lamps on me. I'm an old hand at the game. I can tell you a lot about women that you wouldn't guess in—”

Sampson: “We may, therefore, eliminate Miss Hildebrand as the pernicious force in our deliberations. She has nothing to do with our sense of justice. We would be voting, I take it, just as we have been all along if there were no such person as she. However, it occurs to me that each of you gentlemen may have had the same impression that I had during the trial. I had a feeling that Miss Hildebrand was depending on me to a tremendous extent. You may be sure that I do not charge her with duplicity—God knows I have the sincerest admiration for her—but I found it pretty difficult to meet her honest, serene, trustful eyes without experiencing a decided opinion that it was my bounden duty to acquit her grandfather. Anybody else feel that way about it?”

There was a long silence. Again each man seemed to be waiting for the other to break it. It was the foreman who spoke.

“I'll be perfectly honest, for one,” he said. “I thought and still think that she looked upon me as a friendly juror. Nothing wrong about it, mind you—

not a thing. I wouldn't have you think that she deliberately—er—ahem! What have you to say, No. 7?”

No. 7 blushed violently. “Not a word,” said he. “I profess to be a gentleman.”

No. 8 snorted. “Well, then, act like one. Mr. Sampson's a gentleman. He don't hesitate to say that he was—Say, Mr. Sampson, just what did you say?”

“I said, without the slightest desire to create a wrong impression, that I was deeply affected by the trust Miss Hildebrand appeared to place in me. She believes her grandfather to be innocent, and I think she believes that I agree with her. That's the long and the short of it.” No. 4 slammed his fist upon the table. “By thunder, that's just exactly the fix I'm in. Right from the start, I seemed to feel that I got on this jury because she liked the looks of me. Not the way you think, Hooper, but because I looked like a man who might give her grandfather a square trial and—”

Mr. Hooper interrupted him hotly: “What do you mean by 'not the way you think'? That sounded kind of disparaging, my good man—disparaging to her. Explain yourself.” Sampson interposed. “I think we all understand each other, gentlemen. Miss Hildebrand practically picked the whole dozen of us. She inspected us as we came up, she sized us up, and she had the final word to say as to whether we were acceptable to the defence. She believed in us, or we wouldn't be here to-night. What makes it all the harder for us, gentlemen, individually and collectively, is that we believe in her. Now, what are we to do? Live up to her estimate of us, or live up to a prior estimate of ourselves?”

“Well, let's sleep over it,” said the foreman uneasily. “I guess we're all tired and—”

“I guess we won't sleep much,” broke in No. 7 miserably. “Damn' if you'll ever get me on a jury again. I'm a nervous man anyhow and now—I'm a wreck. I don't know what to do about this business.”

“If it were not for Miss Hildebrand, gentlemen, we'd all know what to do,” said Sampson. “Isn't that a fact?”

“Well, you seem to have made up your mind,” said No. 8 gloomily. “I thought mine was made up, but, by gosh, I—I want to do what's right. I

took my oath to—”

“We will take a ballot before breakfast in the morning,” said No. 1 decisively. “Now, let's sleep if we can.”

They disposed themselves in chairs, stretched out their legs and—waited for an illuminating daybreak.

Sampson's decision was final. He would not stultify his honour. He would not be swayed by the sweetest emotion that ever had assailed him. Besides, he argued through the long, tedious hours before dawn, when all was said and done, what could Alexandra Hildebrand ever be to him? She would go out of his life the day that—

But there he was at it again! Why couldn't he put her out of his thoughts? Why was he continually thinking of the day when he would see the last of her? And what a conceited fool he had been! She had been most impartial with her mute favours. Every man on the jury was figuratively and literally in the same boat with him. Each one of them believed as he believed: that he was the one special object of interest to her.

But still—he was quite sure—she *had* communed with him a little more—was he justified in using the word?—intimately than with the others? Surely he could not be mistaken in his belief that she looked upon him as a trifle superior to—But some one was nudging him violently.

“Wake up, Mr. Sampson,” a voice was saying—a voice that was vaguely familiar. It was a coarse, unfeminine voice. “We're ready to take a ballot before we go out to breakfast. Want to wash up first or will you—”

“What time is it?” muttered Sampson, starting up from his chair. Was it the chair that creaked, or was it his bones? He was stiff and sore and horribly unwieldy.

“Half past seven,” said the foreman. Then Sampson recognised the voice that had interrupted his personal confession. Moreover, he recognised the unshaven countenance. It was really quite a shock, coming so closely upon... “You've been hitting it up pretty soundly. No. 7 says he didn't sleep a wink. Afraid to risk it, he says.”

At eight o'clock an attendant rapped on the door and told them to get ready to go out to breakfast.

“Go away!” shouted the foreman. He was in the midst of an argument with No. 7 when the interruption came, and he was getting the better of it.

“I’m willing to go half way,” said No. 7 dreamily. “Hungry as I am, I’ll go half way. I’ve got the darnedest headache on earth. If I had a cup of coffee maybe I’d—”

“What do you mean half way?” exploded Mr. Hooper. “You can’t render a half-way verdict, can you?”

The ballot had just been taken. It stood eleven to one for conviction! This time No. 7 was the unit.

“No,” said the dreamy No. 7, unoffended. “What I want to do is to make it as light for him as possible. Can’t we find him guilty of embezzlement in the third degree or—” Sampson interrupted. He too wanted his coffee. “Let’s have our breakfast. Afterwards we can discuss—”

“I want to settle it now,” roared Mr. Hooper. “It’s all nonsense talking about breakfast while—”

“Well, then,” said Sampson, “suppose we agree to find him guilty as charged and recommend him to the mercy of the Court.”

This was hailed with acclaim. Even No. 7, emerging temporarily from his mental siesta, agreed that that was “a corking idea.”

“Find him guilty,” he explained, satisfying himself at least, “and then ask the Court to discharge him. Maybe a little lecture would do him good. A few words of advice—”

“And now, gentlemen,” broke in Sampson crisply, “since we have reached the conclusion that we are trying Mr. Hildebrand and not Miss Hildebrand, perhaps we would better have our coffee.”

At ten o’clock the jury filed into the courtroom and took their places in the box. Each was conscious of what he was sure must look like a ten days’ growth of beard, and each wore the stem, implacable look that is best described as “hang-dog.”

A dozen pairs of eyes went on an uneasy journey in quest of an object of dread. She was not there. There were a dozen sighs of relief. Good! If they could only get it over with and escape before she appeared! What was all

this delay about? They were ready with their verdict; why should they be kept waiting like this? No wonder men hated serving on juries.

The Court came in and took his seat. He looked very stern and forbidding. He looked, thought Sampson, like a man who has been married a great many years and is interested only in his profession. A few days earlier he looked more or less like an unmarried man.

“Gentlemen of the jury,” began the Clerk after the roll-call, “have you arrived at a verdict?”

“We have,” said No. 1, with an involuntary glance in the direction of the door.

The verdict itself was clear and concise enough. “We, the jury, find the defendant, James W. Hildebrand, guilty as charged.”

The old man's eyes fell. A quiver ran through his gaunt body. An instant later, however, he sat erect and faced his judges, and a queer, indescribable smile developed slowly at the corners of his mouth. Sampson was watching him closely. Afterwards he thought of this smile as an expression of supreme indulgence. He remembered feeling, at the moment, very cheap and small.

Before the defendant's counsel could call for a poll of the jury, No. 1 arose in his place and laboriously addressed the Court. He announced that the jury had a communication to make and asked if this was the proper time to present it. The Court signified his readiness to hear the communication, and No. 1, nervously extracting from his pocket a sheet of note paper, read the following recommendation:—“The jury, having decided in its deliberations that the defendant, James W. Hildebrand, is legally and morally guilty as charged in the indictment, craves the permission of this honourable Court to be allowed to submit a recommendation bearing upon the penalty to be inflicted as the result of the verdict agreed upon. We would respectfully urge the Court to exercise his prerogative and suspend sentence in the case of James W. Hildebrand. The evidence against him is sufficient to warrant conviction, but there are circumstances, we believe, which should operate to no small degree in his favour. His age, his former high standing among men, and his bearing during the course of this trial, commend him to us as worthy of this informal appeal to your Honour's

mercy. This communication is offered regardless of our finding and is not meant to prejudice the verdict we have returned. In leaving the defendant in the hands of this Court, we humbly but earnestly petition your Honour to at least grant him the minimum penalty in the event that you do not see fit to act upon our suggestion to suspend sentence.”

The document, which was signed by the twelve jurors, had been prepared by Sampson, and it was his foresight that rendered it entirely within the law. He was smart enough not to incorporate it in the finding itself; it was a supplementary instrument which could be accepted or disregarded as the Court saw fit.

The Court gazed rather fixedly at the sheet of paper which was passed to him by an attendant. His brow was ruffled. He pulled nervously at his moustache. At last, clearing his throat, he said, addressing the counsel for the defence:

“Gentlemen, do you wish to poll the jury?”

Mr. O'Brien waived this formality. He and his partner seemed to be rather well pleased with the verdict. They eyed the Court anxiously, hopefully.

“The Court will pronounce sentence on Friday,” announced the justice, his eye on the door. He acted very much like a man who was afraid of being caught in the act of perpetrating something decidedly reprehensible. “I wish to thank the jurors for the careful attention they have given the case and to compliment them on the verdict they have returned in the face of rather trying conditions. It speaks well for the integrity, the soundness of our jury system. I may add, gentlemen, that I shall very seriously consider the recommendation you have made. The prisoner is remanded until next Friday at ten o'clock.”

Half an hour later Sampson found himself in the street. He had spent twenty minutes or more loitering about the halls of the Criminal Courts building, his eager gaze sweeping the throng that was forever changing. It searched remote corners and mounted quadruple stairways; it raked the balcony railings one, two and three flights up; it went down other steps toward the street-level floor. And all the while his own gaze was scouting, the anxious eyes of four other gentlemen were doing the same as his: No. 7,

No. 8, No. 6 and No. 12. They were all looking for the trim, natty figure and the enchanting face of Miss Alexandra Hildebrand—vainly looking, for she was nowhere to be seen.

And when Sampson found himself in the street—(a bitter gale was blowing)—he was attended by two gentlemen who justly might have been identified as his most intimate, bosom friends: the lovesick No. 7 and the predatory No. 12. They had him between them as they wended their way toward the Subway station at Worth Street, and they were smoking his cigars (because he *couldn't* smoke theirs, notwithstanding their divided hospitality)—and they were talking loudly against time. Sampson had the feeling that they were aiming to attach themselves to him for life.

They accepted him as their guiding light, their mentor, their firm example. For all time they would look upon him as a leader of men, and they would be proud to speak of him to older friends as a new friend worth having, worth tying up to, so to say. They seemed only too ready to glorify him, and in doing so gloried in the fact that he was a top-lofty, superior sort of individual who looked down upon them with infinite though gentle scorn.

Moreover, they thought, if they kept on the good side of Sampson they might reasonably expect to obtain an occasional glimpse of Miss Alexandra Hildebrand, for, with his keenness and determination, he was sure to pursue an advantage that both of them reluctantly conceded.

In the Subway local No. 7 invited Sampson to have lunch with him. He suggested the Vanderbilt, but he wasn't sure whether he'd entertain in the main dining room or in the Della Robbia room. He seemed confused and uncertain about it. No. 12 boisterously intervened. He knew of a nice little place in Forty-second Street where you can get the best oysters in New York. He not only invited Sampson to go there. They clung to him, however, until they reached Times Square Station with him but magnanimously included No. 7, which was more than No. 7 had done for him.

Sampson declined. They clung to him, however, until they reached Times Square station. There he said good-bye to them as they left the kiosk.



“Perhaps we may meet again,” he said pleasantly. No. 7 fumbled in his vest pocket and brought forth a soiled business card.

“If you ever need anything in the way of electric fixtures or repairing, remember me, Mr. Sampson,” he said. “Telephone and address as per card. Keep it, please. I am in business for myself. The Trans-Continental Electric Supply Emporium.’

“Here's my card, Mr. Sampson,” said No. 12. “I'd like to come around and give you a little spiel on our new model some day soon. We're practically sold up as far as December, but I think I can sneak you in ahead—what say?”

“I have an automobile, thank you. Two of them, in fact.” He mentioned the make of car that he owned. No. 12 was not disheartened.

“You could have fifteen of our cars for the price you paid for yours—one for every other day in the month. Just bear that in mind. A brand new car every second day. Let me see: your address is—” He paused expectantly.

“The Harvard Club will reach me any time.”

No. 12 started to write it down but paused in the middle of “Harvard” to grasp the extended hand of his new friend. “I fancy you can remember it without writing it down,” went on Sampson, smilingly.

“Never trust to memory,” said No. 12 briskly. “This burg is full of clubs and—well, so long!”

No. 7 was still troubled about luncheon. "I'm sorry you can't go to the Vanderbilt and have a bite—a sandwich and a stein of beer, say." No. 12 turned to speak to a passing acquaintance, and No. 7 seized the opportunity to whisper tensely: "She's staying there. I followed her three times and she always went to the Vanderbilt. Got off the Subway at Thirty-third Street and —"

"She? What she?" demanded Sampson, affecting perplexity.

No. 7 was staggered. It was a long time before he could say: "Well, holy Smoke!" And then, as Sampson still waited: "Why, *her*, of course—who else?"

Sampson appeared to understand at last. He said: "A ripping good hotel, isn't it?"

"A peach," said No. 7, and then they parted.

That evening Sampson dined at the Vanderbilt. At first, like No. 7, he wasn't quite sure whether he would dine upstairs or in the Della Robbia room. He went over the ground very thoroughly before deciding. At eight o'clock he disconsolately selected the main dining-room and ate, without appetite, a lonely but excellent dinner.

He wondered if No. 7 could have lied to him.

CHAPTER V

He also dropped in at the Vanderbilt for lunch on Thursday.

Friday morning he was in the court-room, ostensibly to hear sentence pronounced. He sat outside the railing. Seven of his fellow-jurors straggled in as the hour for convening court approached. Sampson found himself flanked by No. 7 and No. 12, the former a trifle winded after a long run from Worth Street. In a hoarse wheeze he informed Sampson that "she'll be here in a minute," and, sure enough, the words were barely out of his mouth when Alexandra Hildebrand entered the court-room with Mr. O'Brien.

Sampson was shocked by her appearance. She was pale and tired-looking and there were dark circles beneath her wonderful eyes. She looked ill and worn. His heart went out to her. He longed to hold her close and whisper—

"My God!" oozed from No. 7's agonised lips. "She's—she's sick!"

Sampson kicked him violently on the shin. "She'll hear you, you blithering idiot," he grated out.

The courtesy of the Court was extended once more to Miss Hildebrand. She was invited to have a seat inside the railing. If she recognised a single one of the eight jurors who sat outside, she failed to betray the fact by sign or deed. The prisoner, a troubled, anxious look in his eyes, entered and took his accustomed seat instead of standing at the foot of the jury box to await sentence. Miss Hildebrand put her arm over his shoulders and brushed his lean old cheek with her lips. He was singularly unmoved by this act of devotion. Sampson glowered. The old man might at least have given her a look of gratitude, a pat of the hand—oh, anything gentle and grandfatherly. But there he sat, as rigid as an oak, his gaze fixed on the Court, his body hunched forward in an attitude of suspense. He was not thinking of Alexandra.

Hildebrand arose when his name was called, and it was plain that he maintained his composure only by the greatest exertion of the will.

Sampson watched him curiously. He had the feeling that the old man would collapse if the Court's decision proved severe.

The customary questions and answers followed, the old man responding in a voice barely audible to those close by.

“The Court, respecting the wishes of the jurors who tried and found you guilty, James Hildebrand, is inclined to be merciful. It is the judgment of this Court that the penalty in your case shall be fixed at two years' imprisonment, but in view of the recommendation presented here and because of your previous reputation for integrity and the fact that you voluntarily surrendered yourself to justice, sentence is suspended.”

Other remarks by the Court followed, but Sampson did not hear them. His whole attention was centred on Alexandra Hildebrand. Her slim body straightened up, her eyes brightened, and a heavenly smile transfigured her face.

Sampson felt like cheering!

A few minutes later she passed him in the rotunda. For an instant their eyes met. There was a deep, searching expression in hers. Suddenly a deep flush covered her smooth cheek and her eyes fell. She hurried past, and he, stock-still with wonder and joy over this astounding exposition of confusion on her part, failed utterly to pursue an advantage that would have been seized upon with alacrity by the atavistic No. 12. He allowed her to escape!



He allowed her to escape



Aroused to action too late, he bolted after her, only to see her enter a waiting taxi-cab and—yes, she *did* look back over her shoulder. She knew he would follow! He raised his hat, and he was sure that she smiled—faintly, it is true, but still she smiled. If he hoped that she would condescend to alter her course, he was doomed to disappointment. The driver obeyed his original instructions and shot off in the direction of Lafayette Street.

The memory of her tribute—a blush and a fleeting smile—was to linger with Sampson for many a weary, watchful day.

The taxi-cab—a noisy, ungente abomination—was whirling her corporeal loveliness out of his reach and vision with exasperating swiftness, leaving him high and dry in an endless, barren desert. His heart gave a tremendous jump when a traffic policeman stopped the car at the corner

above. He set forth as fast as his long legs could carry him with dignity, hoping and praying that the officer would be as slow and as stubborn about—But she must have looked into the fellow's eyes and smiled, for, with surprising amiability, he signified that she was to proceed. Apparently he was too dazzled to reprimand or caution the driver, for the taxi went forward at an increased speed.

Some one touched Sampson's elbow. He withdrew his gaze from the vanishing taxi-cab and allowed it to rest in sheer amazement upon the bleak countenance of No. 7.

“She's going away,” said No. 7 in sepulchral tones.

“Evidently,” said Sampson. “Exceeding the speed limit while she is about it, too.”

“I mean,” said the other, “she's going to take a long journey. She's leaving New York! That taxi is full of satchels and valises and stuff, and the driver has orders to get her to the Hudson tube by eleven o'clock. I heard that much anyhow, hangin' around here. Say, do you know there is another woman in that cab with her? There sure is. I saw her plain as day. Kind of an old woman with two or three little satchels and one of them dinky white dogs in her lap.”

“A lady's maid,” said Sampson.

“Where do you suppose she's going?”

“How should I know?” demanded Sampson severely.

“And why is she running away without grandpa? What's going to become of the old man? Seems as though she'd ought to hang around until he's—”

“I daresay she knows what she is doing,” said Sampson, disturbed by the same thoughts.

“Maybe he's going to join her later on?” hopefully. “Over in Jersey somewhere.”

“Very likely. Good-bye.” Sampson wrung the limp hand of No. 7 and made off toward Broadway.

He lunched with a friend at the Lawyers' Club. In the smoking room afterwards, he came face to face with the assistant district attorney who had

prosecuted the case of James Hildebrand. His friend exclaimed:

“Hello, Wilks! You ought to know Mr. Sampson. He's been under your nose for a week or ten days.”

Wilks grinned as he shook hands with the exjuror. “Glad to know you as Mr. Sampson, sir, and not as No. 3. We had a rather interesting week, of it, didn't we?”

Sampson was surprised to find that he rather liked the good-humoured twinkle in Wilks's eyes. He had thoroughly disapproved of him up to this instant. Now he appeared as a mild, pleasant-voiced young man with a far from vindictive eye and a singularly engaging smile. Departing from his rôle as prosecutor, Wilks succeeded in becoming an uncommonly decent fellow.

“Interesting, to say the least,” replied Sampson.

Wilks had coffee with them, and a cigar.

“I must say, Mr. Sampson, that you jurors had something out of the ordinary to contend with. There isn't the remotest doubt that old Hildebrand is guilty, and yet there was a wave of sympathy for him that extended to all of us, enveloped us, so to speak. At the outset, we were disposed to go easy with him, realising that we had a dead open and shut case against him.

“We awoke to our danger when the trial was half over. That is to say, we awoke to the fact that Miss Alexandra Hildebrand was likely to upset the whole pot of beans for us. You have no idea what we sometimes have to contend with. There is nothing so difficult to fight against as the force of feminine appeal. Men are simple things, you see. We boast about our righteous strength of purpose, but along comes a gentle, frail bit of womanhood and we find ourselves—well, up in the air! Miss Hildebrand had a decidedly agreeable effect on all of us. It is only natural that she should. We realised what it all meant to her, and I daresay there wasn't one of us who relished the thought of hurting her.

“Her devotion was really quite beautiful,” observed Sampson, feeling that he had to put himself on record.

“I understand how you jurors felt about her and, through her, about the old man. The State is satisfied to let him off as you recommended. It is

more than likely that he was badly treated in those deals with Stevens and Drew, and if he can rehabilitate himself I think we will have done well not to oppose leniency. At any rate, his granddaughter has something to rejoice over, even though she may have been shocked by your decision that he is guilty.”

“What do you know about her, Mr. Wilks?” inquired Sampson.

“Nothing in particular. She is an orphan, as you know, and I understand she has been residing with her grandfather in Switzerland. She returned to this country with him at the time of his voluntary surrender three months ago. His bail was fixed at twenty thousand dollars, and she tried to raise it, but failed. She has been trying to sell his Bronx property, but, of course, that sort of thing takes time. I understand that a deal is about to be closed, however, thanks to her untiring efforts, and the old man may realise handsomely after all. I suppose the Cornwallis Realty and Investment Company will bring civil action to regain the fifty thousand lost through his defection. If he is sensible he will restore the amount and—well, that will be the end of it.”

“Why didn't he sell it long ago?”

“He couldn't very well manage it without coming to New York, and he was so closely watched that he couldn't do that without running a very great risk. Evidently she, believing absolutely in his innocence, induced him to give himself up and have his name cleared of the stigma that was upon it. This is mere conjecture, of course.”

“Well, she's a brick, at any rate,” said Sampson, with some enthusiasm.

Wilks smiled. “That verdict, at least, is universal. Justice, however, has miscarried in more cases than I care to mention, simply because some little woman proves herself to be a brick. No doubt you will recall any number of such cases right here in New York. If we had had the remotest idea what Miss Hildebrand was like, we would have put up a strenuous kick against her sitting beside the prisoner where you all could see and be seen. She made it hard for you to convict the old man, and she certainly wormed the recommendation to the Court out of you. To tell you the truth, we feared an acquittal. When the jury stayed out all night I said to myself: 'We're licked, sure as shooting. 'The best we looked for was a disagreement. I've been told

that the first half dozen ballots stood eleven to one for acquittal. So you see, I wasn't far off in my surmise. It has taught me a lesson. There will be no more attractive, thoroughly upsetting young ladies to cast spells over judge, jury, and lawyers if I can help it. I hope you will pardon me for saying it, Mr. Sampson, but I am firmly convinced if there had been no Miss Alexandra Hildebrand in the case you gentlemen would have brought in your verdict in twenty minutes."

"I suppose you know that I am the one who stood out against the eleven," said Sampson.

"I suspected as much. I don't mind saying that the State counted on you, Mr. Sampson." Sampson started. How was this? The State counted on him also? Suddenly he flushed.

"I had a notion that Miss Hildebrand counted on me, Mr. Wilks."

"She did," said the lawyer. "I think she lost a little of her confidence, however, as the trial progressed. She appeared to be devoting nearly all of her energies to you. You, apparently, were the one who had to be subdued, if you will forgive the term. She is the cleverest, shrewdest young woman I've ever seen. She is the best judge of men that I've ever encountered—far and away better than I or any one connected with our office. When that jury was completed I realised, with a sort of shock, that it was she who selected it. She made but one mistake—and that was in you. There is where we were smarter than she. I knew that you would do the right thing by us, in spite of your very palpable efforts to get off. If there had been some one else in your place, Mr. Sampson, James Hildebrand would have been acquitted."

"Possibly," said Sampson, with a sinking of the heart. He felt like a Judas! She had made but one mistake, and it was fatal!

"As I was saying," went on Wilks, blowing rings toward the ceiling, "women play thunder with us sometimes. A friend of mine from Chicago dined with me last night. He is in the State's Attorney's office out there and he's down here on business. You ought to hear him on the subject of women mixing up in criminal cases. He says it's fatal—if they're pretty and appealing. Nine times out of ten they have more nerve, more character and a good deal more intelligence than the average juror, and Mr. Juror is like wax in their hands. Take a case they had out there last fall—the

Brownley case—you read about it, perhaps. Young fellow from Louisiana got into bad company in Chicago, and went all wrong. Gambled and then had to rob his employers to get square with the world. His father and sister came up from New Orleans and made a fight for him. They got the best legal talent in town, and then little sister sat beside brother and petted him from time to time. A cinch! The jury was out an hour. Not guilty! See what I mean? And you remember the Paris case a year or two ago when the detectives nabbed a couple of international card sharks and bunco men after they had worked the Atlantic for two years straight without being landed? French juries tried 'em separately. One of them got five years and the other got off scot free. Why? Because his pretty young wife turned up and—well, you know the French! Woman is lovely in her place, but her place isn't in the court-room unless she favours the prosecution.”

“They're like good-looking nurses,” said Sampson's friend. “They make a chap forget everything else.”

“Same principle,” said Wilks. “Patients and juries are much the same. They require careful nursing.”

Sampson was like a lost soul during the weeks that followed the trial. The hundred and one distractions he sought in the feverish effort to drive Alexandra Hildebrand out of his thoughts failed of their purpose. They only left him more eager than before. He longed for a glimpse of her adorable face, for a single look into her eyes, for the smile she had promised as she rode away from him, for the sheer fragrance of her unapproachable beauty. She filled his heart and brain, and she was lost to him.

The most depressing fits of jealousy overtook him. He tried to reason with himself. Why shouldn't she have a sweetheart? Why shouldn't she be in love with some one? What else could he expect—in heaven's name, what else? Of course there was one among all the hundreds who adored her that she could adore in return. Still he was sick with jealousy. He hated even the possibility that there was a man living who could claim her as his own.

At the end of a month of resolute inactivity, he threw off all restraint and inaugurated a determined though innocuous search for her. He made it his business to stroll up and down Fifth Avenue during the fashionable hours of the day, and so frantic were his efforts to discover her in the shifting throngs that he always went home with a headache, bone-weary and appetiteless.

His alert, all-enveloping gaze swept the avenue from Thirty-fourth Street to Fiftieth at least twice a day, and by night it raked the theatres and restaurants with an assiduity that rendered him an impossible companion for friends who were so unfortunate as to be involved in his prowlings. His lack of concentration, except in one pursuit, was woful. His friends were annoyed, and justly. No one likes inattention. Half the time he didn't hear a word they were saying to him, and the other half they were resentfully silent.

He invaded Altman's, McCreery's, Lord & Taylor's and the other big shops, buying things that he did not want, and he entered no end of fashionable millinery establishments—and once a prominent corset concern—not for the sake of purchasing, of course, but always with the manner of an irritated gentleman looking for an inconsiderate wife.

This determined effort to ferret out Miss Hildebrand was due to a report from No. 7, on whom he called one day in regard to an electrical disturbance in his apartment. No. 7 told him that No. 4, who was the proprietor of a plumbing establishment in Amsterdam Avenue, had seen Miss Hildebrand on top of a passing Fifth Avenue stage. By means of some remarkable sprinting No. 4, fortunately an unmarried man, overtook the stage at the corner above (Forty-fifth Street and Fifth Avenue), and climbed aboard. Just as he sat down, all out of breath, two seats behind the young lady, she got off and entered Sloane's. No. 4 had a short argument with the conductor about paying fare for a ride of two blocks, but it was long enough to carry him to the corner above Sloane's, so that when he got back to the big shop she was lost.

He was not discouraged. Saying that he was waiting for his wife he continued to invest the approach to the elevators with such success that after nearly an hour (and an hour as computed by plumbers is no small matter) he was rewarded by the appearance of Miss Hildebrand.

Without notifying the floorwalkers that he couldn't wait any longer for his wife, he made off after the young lady, leaving them to think, if they thought at all, that his wife was a very beautiful person who had married considerably beneath her station. Miss Hildebrand waited at the corner for a stage. No. 4 already had squandered ten cents, but he didn't allow that to stand in the way of further adventure. He had his dime ready when the 'bus

came along—in fact, he had two dimes ready, for it was his secret hope that she would recognise him. But alas! There was room for but one more passenger, and he was left standing on the curb, while she went rattling up the avenue in what he reckoned to be the swiftest 'bus in the service.

Sampson's deductions were clear. She wouldn't be shopping at Sloane's unless she was buying furnishings of some sort for a house, and it was reasonable to suppose that the house was somewhere within reach of the stage line route. No. 4 had failed to note, however, whether she took a Riverside Drive or a Fifth Avenue stage. Although Sampson was not in need of a plumber's services, he looked up No. 4 and had him send men around to inspect the drain in the kitchen sink. It cost him nearly twelve dollars to have a five minutes' profitless interview with the master-plumber.

It was at this time that he began his pilgrimages up and down Fifth Avenue, and it was also about this time that he acknowledged himself to be a drivelling, silly, sentimental idiot—worse even than the drooping No. 7.

In the course of his investigations he dropped in to see No. 8 at the hat store; he talked insurance with No. 11 (and forever afterward had it talked with him, despite all the pains he took to stop it); he ordered a suit of clothes at the tailor shop of No. 6; and he even went so far as to consult No. 1 about having his piano tuned, a proceeding which called for the immediate acquisition of an instrument. (It occurred to him, however, that it might prove to be money well spent, for any man who is thinking of getting married ought to have a grand piano if he can afford it.)

One day, overcoming an aversion, he sauntered up to a place in Broadway and inquired for No. 12. To his amazement, No. 12 seemed a bit hazy as to the existence of such a person as Miss Hildebrand. It was some time before the fellow could call her to mind, and then only when the trial was mentioned.

“Ah, yes,” said he, rapping his brow soundly, “I get you now. The pretty little thing we saw at the trial. Lord, man, how long ago was that? Two months? Well, say, I've seen a couple or three since then that make her look like a last year's bird's-nest. I'm demonstrating for a little cutey in the Follies just at present and she has Miss Hildebrand lashed to the mast. Yellow hair and eyes as blue as—What's your hurry? I'm not busy—got all kinds of time.”

But Sampson “walked out on him,” raging inwardly. It was all he could do to conquer an impulse to kick No. 12. Comparing Alexandra Hildebrand with a “little cutey in the Follies”! And forgetting her, too! Unspeakable!

He discovered James Hildebrand a day or two later. The old man was living in a small hotel just off Broadway, in the upper Forties. An actor friend of Sampson's was living in the same hotel, and it was through him that he learned that Hildebrand had been stopping there for nearly two months, quite alone. A surprisingly pretty young woman had called to see him on two or three occasions. According to Sampson's informant, the old gentleman had just concluded a real estate deal running into the hundreds of thousands and was soon to return to Europe. This was most regrettable, lamented the actor, for he couldn't remember ever having seen a prettier girl than Hildebrand's visitor—who, he had found out at the desk, was a relative of some description.

A simple process would have been to interview old Mr. Hildebrand, but Sampson's pride and good-breeding proved sufficiently strong and steadfast in the crisis. He held himself aloof.

A week later he saw Mr. Hildebrand off on one of the trans-Atlantic liners. Mr. Hildebrand was not aware of the fact that he was being seen off by any one, however, and Sampson was quite positively certain that no one else was there for the purpose. There was no sign of Alexandra.

He went abroad that summer.... Early in the autumn he was back in New York, resolved to be a fool no longer. No doubt she had married the chap she loved—and was living happily, contentedly in luxurious splendour supplied by Sloane's—as long ago, no doubt, as the early spring it may have happened.

His heart had once ached for her as an orphan, but all that would now be altered if she had taken unto herself a husband. Somehow one ceases to be an orphan the instant one marries. You never think of a fatherless and motherless wife as an orphan. An orphan is some one you are expected to feel sorry for.

He never had thought of himself as an orphan, although his father and mother had been dead for years. No one ever had been sorry for him

because he was an orphan. What is it that supplies pity for one sex and not for the other?

January found him in California. A year ago he had planned—Alas, his thoughts were ever prone to leap backward to the events of a year ago—back to the twentieth day of January. He would never forget it. On that day he first looked upon the loveliest of all God's creatures. The year had not dimmed his vision. He could see her still as plainly as on that memorable January day when they “landed” him.

He wanted to see her once more, married or single, just to tell her that it was conscience that caused him to fail her in her hour of need. He wanted her to understand. He wanted her to believe that he couldn't help being honest, and he wanted very much to hear her say that he did the only thing an honourable gentleman could possibly do.

Wending his way northward, he came to San Francisco late in February, and there fell into the open arms of several classmates whom he had not seen since his college days. One of them was Jimmy Dorr, now a brilliant editor and journalist. To him he related the story of the Hildebrand trial, and the fruitless quest of the girl he still dreamed about. Jimmy was vastly interested. He was a romanticist. His eyes glittered with excitement.

“By Jove, it's a corker!” he exclaimed, breathlessly.

“A corker?” repeated Sampson, staring.

“Corking idea for a novel, that's what I mean. Why, you couldn't beat it if you sat down and thought day and night for ten years. Ideas, that's what the novelists want. The only thing that has kept me from breaking into the literary game is an absolute paucity of—ideas. And here you are handing me one. I shall write a novel. I'll have you find her imprisoned in a dungeon by the conniving grandparent—”

“Or by a rascally husband,” put in Sampson, gloomily.

Dorr became thoughtful. “By the way, we've been having a more or less notable trial here for the past week and a half. Lot of interest in it all over the country. Have you heard of the Rodriguez ease?”

“Not yet,” said Sampson, resignedly. “Fire away. I 'll listen.”

“The arguments to the jury will be concluded to-morrow morning and there ought to be a verdict before night. How would you like to go around there with me at ten o 'clock and hear the State's closing argument? I can manage it easily, although it's hard to get tickets. In a word, it is the most popular show in town. Standing room only. Come along, and I'll bet my head you'll never forget the experience.”

“I hate a court-room,” said Sampson.

“Well, you won't hate this one. I've been dropping in every day for an hour or so, and, by gad, it *is* interesting.” A faraway, dreamy look came into Dorr's spectacled eyes. “Rodriguez is a wonderful character. You see such chaps only in books and plays—seldom in plays, however, for you couldn't find actors to look the part. He is a Spaniard, a native of Mexico City, and as lofty as any grandee you'd find in old Granada itself. Private detectives caught him in Tokio last summer, after a world-wide search of three years. He is charged with forgery. Forged a deed to some property in Berkeley and got away with the proceeds of the sale. He stubbornly maintains that the deed was a bona-fide instrument, and is fighting tooth and nail against the people who accuse him. I 'd like to have you see him, Sampy.”

The next morning, a bit bored but conscious of a thrill of interest in attending a trial in the capacity of spectator instead of talesman, Sampson accompanied the editor to the court-room where the case of the State vs. Victoriana Rodriguez was being heard. The corridors and approaches were packed with people. A subdued buzz of excitement pervaded the air. Every face in the throng revealed the ultimate of eagerness, each body was charged with a muscular ambition to crowd past the obstructing bodies before it. Sampson had never witnessed anything like this before. He demurred.

“See here, Jimmy, I refuse to surge with a mob like this. Good-bye, old man. See you—”

But Dorr conducted him to the private entrance to the judge's chambers, and a few minutes later into the crowded court-room. They found places behind the row of reporters and stood with their backs to the wall.

The jury was in the box, awaiting the opening of court. Sampson surveyed them with some interest. They were a youngish lot of men and, to

his way of thinking, about as far from intelligent as the average New York jury. They looked dazed, bewildered and distinctly uncomfortable. He knew how they were feeling—no one knew better than he!

The prisoner entered, followed by his counsel, and took his seat. Sampson favoured Dorr with a smile of derision. Rodriguez was a most ordinary looking fellow—swarthy, unimposing and at least sixty years of age. He was not at all Sampson's conception of a Spanish grandee. Certainly he was not the sort of chap an author would put into a book with the expectation of having his readers accept him as a hero.

“Good Lord, Jimmy, is *that* the marvellous character you've been talking about!” whispered the New Yorker. “Why, he's just a plain, ordinary greaser. Nothing lofty about him.”

But Jimmy didn't hear. He was gazing in rapt eagerness over the heads of the seated throng outside the railing. Sampson leaned forward and whispered something to the reporter from Dorr's paper. He repeated the remark, receiving no response the first time. The young fellow's reply, when it came, was what Sampson, from his vast experience in law courts, summed up as “totally irrelevant and not pertinent to the case.”

Somewhat annoyed, he turned to Jimmy Dorr. That gentleman's gaze was fixed, so Sampson followed it. A young woman had taken the seat beside the prisoner. He could not see her face, but something told him that it was attractive—and then he was suddenly interested in the way her dark hair grew about her neck and ears. Dorr was whispering:

“She's the most wonderful thing you ever laid eyes on, Sampy. Wait till you get a good peek at her face. You'll forget your old Miss Hill-obeans. She landed here about a month ago, straight from Spain, where she has been in a convent since she was fourteen. Doesn't speak a word of English—not a syllable, the reporters say. She—Hey! Sh! What the devil's the matter with you!”

Sampson had uttered a very audible exclamation. He was staring at her with widespread, glazed, unbelieving eyes. She had turned to favour the reporters with a wistful, shy, entrancing “good morning” smile, and he looked once more upon the face he had never forgotten and would never forget.

“My God!” he whispered, grasping Dorr's arm in a grip that caused his friend to wince. “Why, it's—Not a word of English! A month ago! Out of a convent!” He was babbling weakly. His brain was not working.

“Is it too hot in here for you, old man!” whispered Dorr, alarmed. “Shall we get out! You look as though—”

“Who is she!” gasped Sampson.

Dorr looked triumphant. “I thought she'd bowl you over. But, my Lord, I didn't dream she'd give you such a jolt as this. The whole damned bunch of us has gone mad over her. She's old Rodriguez's daughter—the Senorita Isabella Consuelo Maria Rodriguez.”

THE END

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She was looking into his eyes, calmly, seriously, and,
he thought, a bit speculatively (*Page 13*)

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BY
GEORGE BARR 'McCUTCHEON

Author of "Graustark," "Brewster's
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NEW YORK
DODD, MEAD AND COMPANY

1916

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For the first time, Sampson directed his attention to the woman

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She sent one swift, reassuring look through the jury box

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They clung to him, however, until they reached Times
Square Station

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He allowed her to escape

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